# Interpretation of Statutes

Module-wise Notes and Exam Answers

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# INTERPRETATION OF STATUTES (LCC 0703): Module-wise Explanation

## MODULE 1: INTRODUCTION TO INTERPRETATION AND THE GENERAL CLAUSES ACT, 1897

### 1. Meaning, need and object of interpretation

**Meaning.** Interpretation is the process by which courts find out the **meaning and intention of the legislature** from the words it has used in a statute. Salmond describes it as "the process by which the courts seek to ascertain the meaning of the legislature through the medium of authoritative forms in which it is expressed."

The legislature speaks only through the text. Once the law is passed, the courts have to apply that text to real disputes. This is where interpretation comes in.

**Need.**

1. **Language is imperfect.** Words often have more than one meaning.
2. **Drafting has limits.** Legislators cannot foresee every situation.
3. **Society changes.** New technology and new social conditions arise after a law is made. For example, the internet and electronic records did not exist when the Evidence Act was drafted.
4. **General words** must be applied to specific facts.
5. **Provisions can conflict**, either within one Act or between two Acts.
6. **Complex statutes** must be read as a whole for the parts to make sense.

**Object.** The main object is to **give effect to the intention of the legislature**. Related aims are:

- to make the law **workable**, following the maxim *ut res magis valeat quam pereat* (it is better for a thing to have effect than to fail);
- to **resolve ambiguity** and fill small gaps;
- to ensure **certainty and justice**.

*R.M.D. Chamarbaugwalla v. UOI* (1957): the intention of the legislature must be gathered from the words used, read in their context.

### 2. Interpretation vs construction

Writers draw a distinction between the two terms, though courts use them interchangeably.

- **Interpretation** means finding the **meaning of the words**. It is **linguistic** and stays close to the text.

- **Construction** means drawing **conclusions beyond the direct expression of the text**, from its spirit and purpose. It is used when the words are unclear or a situation is not covered.

**Cooley:** “Interpretation is the art of finding out the true sense of any form of words… Construction is the drawing of conclusions respecting subjects that lie beyond the direct expression of the text.”

| Interpretation | Construction |
|---|---|
| Finds the meaning of words | Draws legal conclusions beyond the words |
| Linguistic | Legal |
| Used when words are clear | Used when words are ambiguous or silent |
| Literal sense | Spirit and purpose |

## 3. Concept and classification of statutes

A **statute** is written law made by a **competent legislature**. It includes Acts of Parliament and State legislatures, Ordinances, and delegated legislation (rules, regulations, bye-laws).

Statutes are classified in several ways.

**By duration**

- **Perpetual**: no fixed time limit. Stays in force until repealed.
- **Temporary**: lasts for a fixed period and then expires.

**By method**

- **Mandatory**: must be strictly obeyed. Non-compliance makes the act invalid.
- **Directory**: substantial compliance is enough.
- How to tell them apart: look at the **intention** of the legislature, the **object** of the provision, and the **consequences of non-compliance**. The word “shall” is not decisive by itself. See *State of U.P. v. Manbodhan Lal Srivastava* (1957); *Sharif-ud-Din v. Abdul Gani Lone* (1980).

**By object**

- **Codifying**: states the whole law on a subject.
- **Consolidating**: gathers existing laws into one Act.
- **Declaratory**: removes doubts about what the law is.
- **Remedial**: gives a new remedy or benefit.
- **Amending**: changes an existing law.
- **Repealing**: ends an existing law.
- **Penal**: imposes punishment.
- **Taxing**: imposes tax.
- **Enabling**: grants powers.

- **Disabling**: restricts rights.
- **Validating**: cures past defects.

**By extent**

- **General**: applies to the whole community.
- **Local, special or private**: applies to a place, a subject, or particular persons.

**By operation in time**

- **Prospective** or **retrospective**.

## 4. General Clauses Act, 1897

**Why it exists.** If every Act had to define common words like “person”, “month” or “good faith”, and repeat general rules about repeal and time, statutes would be very long and inconsistent. The GCA provides **common definitions and general rules** that apply to all Central Acts and Regulations, **unless there is something repugnant in the subject or context**. States have their own General Clauses Acts. Article 367 applies the GCA to the interpretation of the **Constitution** as well.

**Preliminary (ss. 1–2):** short title, extent and repeal.

**Definitions (s.3).** Important ones:

- “**act**” includes illegal omissions;
- “**document**”;
- “**good faith**”: a thing done honestly, **whether negligently or not**;
- “**immovable property**” and “**movable property**”;
- “**month**”: a British calendar month;
- “**offence**”;
- “**person**”: includes any company or association, incorporated or not;
- “**sign**”;
- “**State**”;
- “**writing**”.

**General rules of construction**

- **s.5 (commencement):** if no date is given, a Central Act comes into force on the **day it receives assent**. It takes effect from the **midnight** at the start of that day.
- **s.6 (effect of repeal):** a repeal does not revive anything, does not affect past operation, accrued rights and liabilities, penalties already incurred, or pending proceedings, unless a different intention appears. (Covered in detail in Module 7.)
- **s.6A:** repealing an amending Act does not undo the amendments it already made.
- **s.7:** a repealed Act is revived only if this is expressly stated.
- **s.8:** references to a repealed provision are read as references to the re-enacted provision.
- **s.9 (time):** “from” **excludes** the first day; “to” **includes** the last day.

- **s.10:** if the last day for doing something falls when the **court or office is closed**, it may be done on the **next working day**.
- **s.11:** distances are measured in a straight line on a horizontal plane.
- **s.13 (gender and number):** the **masculine includes the feminine**, and the **singular includes the plural** and vice versa.

**Powers and functionaries**

- **s.14:** a power may be **exercised from time to time** as needed.
- **s.15:** a power to appoint includes a power to appoint ex officio.
- **s.16:** a **power to appoint includes a power to suspend or dismiss**.
- **s.17:** references to an office cover whoever holds it.
- **s.18:** references cover successors.
- **s.19:** references to official chiefs cover their subordinates.

**Orders, rules and bye-laws made under enactments**

- **s.20:** words in rules and notifications have the **same meaning as in the parent Act**.
- **s.21:** the **power to issue** a notification, order or rule **includes the power to add to, amend, vary or rescind** it. This does not apply to quasi-judicial orders (*Indian National Congress (I) v. Institute of Social Welfare*, 2002).
- **s.23:** rules may be made only after **previous publication** where the Act requires it.
- **s.24:** rules and orders made under a repealed Act **continue** under the re-enacted Act, so far as they are consistent with it.

**Miscellaneous**

- **s.26:** if an act is an offence under **two enactments**, the offender may be prosecuted under either, but **not punished twice**.
- **s.27:** service by **registered post**, properly addressed, is deemed to be effected.

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# MODULE 2: GENERAL PRINCIPLES AND RULES OF INTERPRETATION

## 1. Mimansa principles of interpretation (Indian Knowledge System)

**Background.** Mimansa is an ancient Indian school of interpretation founded by **Jaimini** (the *Mimansa Sutras*). It was developed further by **Shabara, Kumarila Bhatta and Prabhakara**. It was originally created to interpret the **Vedas** so that rituals could be performed correctly. Later, jurists such as **Vijnaneshwara** (author of the *Mitakshara*) and **Jimutavahana** used it to interpret the Smritis, which was the law of the time.

It is a highly **rational and systematic** method. In some ways it is more refined than the English rules.

**Modern revival.** Justice **Markandey Katju** brought Mimansa back into Indian law through his article "The Mimansa Principles of Interpretation" (1993) 1 SCC (Jour) 16, and through judgments such as:

- ***Ispat Industries Ltd. v. Commissioner of Customs* (2006)**;
- ***Udai Shankar Awasthi v. State of U.P.* (2013)**.

**The six tests for finding the meaning of a text (shadlinga)**

1. **Upakrama–Upasamhara**: the beginning and the conclusion of the text must be read together.
2. **Abhyasa**: repetition shows emphasis.
3. **Apurvata**: what is new or unique in the text.
4. **Phala**: the result or purpose.
5. **Arthavada**: explanatory or praising passages.
6. **Upapatti**: logical reasoning and consistency.

**The six means of interpretation, in decreasing order of strength**

1. **Shruti**: the **express words**. This is like the literal rule.
2. **Linga**: the **suggestive power** of words, i.e. the implied meaning.
3. **Vakya**: the **syntactical connection**, i.e. the sentence as a whole.
4. **Prakarana**: the **context**.
5. **Sthana**: the **position** or order of the words.
6. **Samakhya**: the **name** or etymology.

When these conflict, the **earlier one prevails** over the later.

**Important axioms (nyayas)**

- **Sarthakya**: every word must have a meaning. No word is redundant. This is the same as the modern rule against surplusage.
- **Laghava**: prefer the **simpler** interpretation that needs fewer assumptions.
- **Arthaikatva**: a word has **one meaning in one context**. Double meanings are avoided.
- **Gunapradhan**: when a **subordinate (guna)** provision conflicts with the **principal (pradhan)** provision, the subordinate gives way. In *Ispat Industries*, the Customs Valuation Rules (subordinate) gave way to the Customs Act (principal).
- **Samanjasya**: reconcile apparently conflicting provisions. This is the same idea as **harmonious construction**.
- **Vikalpa**: when two provisions genuinely cannot be reconciled, an **option** is allowed. This is used only as a last resort.
- **Atidesha**: extending the features of one thing to another by **analogy**.
- **Badha**: one rule is excluded in favour of another.

**Vidhi, Nishedha and Arthavada.** Mimansa divides texts into:

- **Vidhi**: a positive command;
- **Nishedha**: a prohibition;

- **Arthavada**: explanatory or recommendatory statements.

Arthavada is **directory**, not binding. Courts have used this idea to tell **mandatory** provisions from **directory** ones.

## 2. Literal rule

**Rule.** Words must be given their **plain, ordinary and grammatical meaning**. If the words are clear, the court must apply them **even if the result is harsh**, because the legislature is presumed to mean what it says.

**Sussex Peerage Case** (1844), Tindal C.J.: if the words are precise and unambiguous, nothing more is needed than to expound them in their natural and ordinary sense.

### Cases

- ***Whiteley v. Chappell* (1868)**: it was an offence to impersonate "any person entitled to vote". The accused impersonated a **dead voter**. A dead person is not "entitled to vote", so the accused was **acquitted**. This shows how the literal rule can produce absurd results.
- *R v. Harris* (1836): the words were "stab, cut or wound". **Biting off a nose** did not fall within them.
- *Fisher v. Bell* (1961): displaying a flick-knife in a shop window was an **invitation to treat**, not an "**offer for sale**".
- ***Nelson Motis v. UOI* (1992)**: clear words must be applied as they are.
- *Kanai Lal Sur v. Paramnidhi Sadhukhan* (1957): if the words are clear, the consequences are irrelevant.
- ***Raghunath Rai Bareja v. Punjab National Bank* (2007)**: the literal rule is the **first rule** of interpretation. A hard case does not justify departing from it.
- *Ramavtar Budhaiprasad v. ATO* (1961): words in a taxing statute are read in their **popular sense**. "Vegetables" did **not include betel leaves**.

### Merits

- It respects the **separation of powers**.
- It gives **certainty**.
- It prevents judges from making law.

### Demerits

- It can produce **absurd or unjust** results.
- It ignores the **purpose** of the law.
- It assumes language is perfect, which it is not.

## 3. Golden rule

**Rule.** A modified literal rule. The ordinary meaning is followed **unless** it leads to **absurdity, inconsistency, hardship or repugnancy**. In that case the meaning may be **modified, but only as far as necessary** to avoid the absurdity.

Lord Wensleydale in ***Grey v. Pearson* (1857)**: "the grammatical and ordinary sense of the words is to be adhered to unless that would lead to some absurdity… in which case [it] may be modified so as to avoid that absurdity… but no further."

**Cases**

- ***R v. Allen* (1872)**: bigamy was defined as "whoever being married shall **marry** another". A second marriage is legally void, so literally no one could ever "marry" a second time. "Marry" was read as "**go through a form of marriage**".
- ***Re Sigsworth* (1935)**: a son who **murdered his mother** was not allowed to inherit from her, even though the succession statute literally entitled him to.
- *Adler v. George* (1964): "**in the vicinity of**" a prohibited place was read to include "**in**" the place.
- ***Tirath Singh v. Bachittar Singh* (1955)**: a provision requiring notice "to persons" was read narrowly to avoid the absurdity of having to give notice to everyone.
- ***State of Punjab v. Qaisar Jehan Begum* (1963)**: the "**date of the award**" meant the date the party **came to know** of it, not the date it was signed.

**Merit:** it avoids absurd results while keeping close to the text. **Demerit:** what counts as "absurd" is **subjective**.

## 4. Mischief rule (Heydon's rule)

**Origin. *Heydon's Case* (1584).** This is the **oldest** of the rules. The court must consider four things:

1. What was the **law before** the Act?
2. What was the **mischief or defect** the old law did not cover?
3. What **remedy** has Parliament provided?
4. What is the **true reason** for the remedy?

The court must then adopt the meaning that **suppresses the mischief and advances the remedy**.

**Cases**

- ***Smith v. Hughes* (1960)**: prostitutes were charged with soliciting "**in a street**". They had solicited from **balconies and windows**. They were held liable, because the mischief was the harassment of people in the street.
- *Corkery v. Carpenter* (1951): a **bicycle** was held to be a "carriage".
- ***Bengal Immunity Co. v. State of Bihar* (1955)**: Art. 286 was interpreted to prevent multiple taxation of inter-State sales.
- ***Kanwar Singh v. Delhi Administration* (1965)**: "**owner**" of stray cattle included a person in **possession or control** of them.
- *Alamgir v. State of Bihar* (1959).
- *Sodra Devi v. CIT* (1957): "individual" included **women**.

**Modern form.** The mischief rule has developed into the broader **purposive approach**: read the statute to carry out its purpose (*Pepper v. Hart*, 1993).

**Merits:** it gives effect to legislative purpose and avoids injustice. **Demerits:** judges get wide discretion, and finding the original "mischief" in old records can be difficult.

## 5. Harmonious construction

**Rule.** When two provisions in the same statute, or in two statutes, appear to **conflict**, the court must try to **reconcile them** so that **both have effect**. One provision must not be read in a way that makes the other **useless**. The statute is read **as a whole**.

**Principles from *CIT v. Hindustan Bulk Carriers* (2003)**

- Avoid a **head-on clash** between provisions.
- One provision cannot be used to **defeat** another unless reconciliation is impossible.
- If they cannot be fully reconciled, give effect to **both as far as possible**.
- Neither provision should become a **dead letter**.

**Cases**

- ***Venkataramana Devaru v. State of Mysore* (1958)**: Art. 25(2)(b) (throwing open Hindu temples to all classes) appeared to conflict with Art. 26(b) (a denomination's right to manage its religious affairs). They were harmonised: the temple was open to all, but the denomination could **exclude the public from certain special ceremonies**.
- ***Re Kerala Education Bill* (1957)**: Fundamental Rights and Directive Principles should be harmonised.
- *Sri Shankari Prasad v. UOI* (1951): Articles 13 and 368 were harmonised.
- *M.S.M. Sharma v. Sri Krishna Sinha* (1959): Art. 19(1)(a) and legislative privileges were harmonised.

This rule is the modern equivalent of Mimansa's **Samanjasya** principle.

## 6. Rule of last antecedent

**Rule.** Qualifying words or phrases normally refer to the **nearest preceding word** (the last antecedent), and not to all the earlier words, **unless the context shows otherwise**.

**Example.** In "a dog, a horse or a cat that is black", "that is black" qualifies only "cat".

**Exception.** If a **comma** separates the qualifying phrase from all the antecedents, or the sense requires it, the phrase may apply to **all of them**.

Indian courts treat this rule only as an **aid**. It gives way to the **context and intention** of the statute (*Lockhart v. United States*, 2016, is a modern US example of the rule).

## 7. Non-obstante clause

**Meaning.** A clause beginning "**Notwithstanding anything contained in…**". It gives the provision **overriding effect** over the provisions or laws it names, but **only where there is a conflict**.

**Principles**

- If there is **no conflict**, the clause has no work to do.
- It must be read together with the **enacting part** of the section. It does not cut down the enacting part.
  - *Aswini Kumar Ghosh v. Arabinda Bose* (1952);
  - ***Chandavarkar Sita Ratna Rao v. Ashalata Guram* (1986)**;
  - *R.S. Raghunath v. State of Karnataka* (1992).
- When **two statutes both contain non-obstante clauses**, the courts usually prefer the **later** statute or the **special** one, after looking at the purpose of each (*Solidaire India v. Fairgrowth Financial Services*, 2001).

**Examples:** IBC s.238; Art. 31C of the Constitution.

## 8. Legal fiction

**Meaning.** The law **deems** something to exist, or treats one thing as another, even though in reality it is not so. Typical words are "**deemed**", "**as if**", and "**shall be treated as**".

**Principle.** Lord Asquith in ***East End Dwellings Co. v. Finsbury Borough Council* (1952)**: if you are told to imagine a state of affairs as real, you must also imagine as real all its **inevitable consequences**. "**Your imagination must not boggle**" at the corollaries.

This was adopted in India in ***State of Bombay v. Pandurang Vinayak* (1953)**.

**Limit.** A legal fiction must be **confined to the purpose** for which it was created. It cannot be extended beyond that purpose (*Bengal Immunity*, 1955; *CIT v. Amarchand Shroff*, 1963).

**Examples:**

- a company treated as a legal person;
- an adopted child treated as a natural child;
- the deemed partition under s.6 of the Hindu Succession Act.

## 9. Conjunctive and disjunctive words: "and" / "or"

**Ordinary meaning**

- "**And**" is **conjunctive**: all the conditions must be satisfied.
- "**Or**" is **disjunctive**: any one of the alternatives is enough.

**Exception.** If the ordinary reading would cause **absurdity** or defeat the clear **intention** of the legislature, the court may read "and" as "or", or "or" as "and".

- *R v. Oakes* (1959): "**and**" was read as "**or**" to avoid an absurd result.
- *Joint Director of Mines Safety v. Tandur & Nayandgi Stone Quarries* (1987) is also cited on this point.

Courts do this **only when necessary**, as an application of the golden rule.

## 10. Construction of general words

### (a) Ejusdem generis ("of the same kind")

**Rule.** When **general words follow a list of specific words** that form a single class (genus), the general words are **limited to things of the same class**.

**Example.** In "dogs, cats and other animals", "other animals" means other **domestic** animals, not lions or tigers.

#### Conditions (*Amar Chandra Chakraborty v. Collector of Excise*, 1972)

1. There is a **list of specific words**.
2. The specific words form a **distinct class or genus**.
3. The class is **not exhausted** by the list.
4. **General words follow** the list.
5. There is **no contrary intention** in the statute.

#### Cases

- ***Powell v. Kempton Park Racecourse* (1899)**: "house, office, room or **other place**" used for betting. The specific words described **indoor places**, so an **open-air enclosure** was not covered.
- *Evans v. Cross* (1938): painted white lines on a road were not a "**traffic sign**".
- *Kochuni v. State of Madras* (1960).
- *U.P. State Electricity Board v. Hari Shankar Jain* (1978).
- *Lilavati Bai v. State of Bombay* (1957): the rule was **not applied**, because the legislature clearly intended a wider meaning.

### (b) Noscitur a sociis ("a word is known by the company it keeps")

**Rule.** The meaning of an unclear word is found by looking at the **words around it**. This is **wider** than ejusdem generis; ejusdem generis is really one application of it.

#### Cases

- *Foster v. Diphwys Casson* (1887): "case or canister" for carrying explosives did **not include a cloth bag**.
- *Pengelly v. Bell Punch Co.* (1964): "floors, steps, stairs, passages" meant floors used for **passage**, not for storage.
- ***State of Bombay v. Hospital Mazdoor Sabha* (1960)**: the court did not narrow "**industry**", and a hospital was held to be an industry.
- ***Rainbow Steels v. CST* (1981)**: "old, discarded, unserviceable or obsolete machinery". "Old" took its colour from the other words and meant **no longer usable**.
- *Godfrey Phillips v. State of U.P.* (2005): "**luxuries**", read with "entertainment, amusement, betting", did **not include tobacco**.

**(c) Reddendo singula singulis (“referring each to each”)**

**Rule.** Where a sentence has **several subjects and several objects**, each is matched with its **appropriate** partner (read distributively).

**Example.** “If anyone shall **draw or load** any **sword or gun**” is read as “**draw a sword** or **load a gun**”. One does not “load” a sword.

**(d) Words of rank**

**Rule.** When general words follow words of a **particular rank**, they cover only persons or things of **equal or lower rank**, never higher.

**Examples**

- “Deans, archdeacons, parsons and **others having spiritual promotion**” did **not include bishops**, who rank higher.
- “Earls, barons and **other nobles**” did **not include dukes**.

**Related maxims**

- ***Expressio unius est exclusio alterius***: express mention of one thing excludes others.
- ***Generalia specialibus non derogant***: a general provision does not override a special one.

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# MODULE 3: INTERNAL AND EXTERNAL AIDS TO INTERPRETATION

When the words of a statute are unclear, the court looks for help. **Internal aids** are found **within the statute**. **External aids** come from **outside** it.

## 1. Internal aids

**(a) Long title and short title**

- The **long title** describes the purpose of the Act. It may be used to resolve ambiguity.
- The **short title** is only a label for identification.

**(b) Preamble** The preamble sets out the **object and reasons** for the Act. It has been called the “**key to open the mind of the legislature**”.

- It can be used **only where the enacting words are ambiguous**. It **cannot override** clear words (*A.G. v. Prince Ernest Augustus of Hanover*, 1957; *Burrakur Coal Co. v. UOI*, 1961).
- For the Constitution: ***Re Berubari Union* (1960)** held the Preamble was **not part** of the Constitution. ***Kesavananda Bharati* (1973)** overruled this and held that the Preamble **is part of the Constitution** and an important aid to interpreting it.

**(c) Definition clauses**

- "**Means**": the definition is **exhaustive**. Nothing else is included.
- "**Includes**": the definition is **extensive**. It adds to the ordinary meaning.
- "**Means and includes**": the definition is **exhaustive** (*P. Kasilingam v. PSG College of Technology*, 1995).
- Definitions apply "**unless the context otherwise requires**".

**(d) Headings** Headings over a section or group of sections act like a **preamble** to them. They can help **resolve doubt**, but they **cannot control the clear meaning** of the section (***Bhinka v. Charan Singh*, 1959**; *Frick India v. UOI*, 1990).

**(e) Marginal notes** These are short notes printed beside a section, usually added by the draftsman and not voted on by the legislature. So they carry **little weight**. In the **Constitution**, however, the marginal notes were adopted by the Constituent Assembly, so they are given more weight (*Bengal Immunity*, 1955).

**(f) Illustrations** Illustrations (as in the BNS and the Evidence Act) show how a section works. They **cannot restrict or expand** the section. If an illustration conflicts with the section, the **section prevails** (***Shambhu Nath Mehra v. State of Ajmer*, 1956**).

**(g) Proviso** A proviso ("**Provided that…**") normally **makes an exception to, or qualifies,** the main provision. It does not usually expand it.

***S. Sundaram Pillai v. V.R. Pattabiraman* (1985)** listed four roles of a proviso:

1. to **qualify or make an exception** to the main provision;
2. to **change the concept** of the main provision by adding mandatory conditions;
3. to become an **integral part** of the provision, taking on the character of a substantive enactment;
4. to act as an **optional addendum** that only explains the provision.

See also *Shah Bhojraj Kuverji Oil Mills v. Subhash Chandra Yograj Sinha* (1961).

**(h) Explanation** An explanation **clarifies** the meaning of the main provision, removes doubts, or fills a gap. It does not normally enlarge the section. An explanation added "**for removal of doubts**" can, however, widen its scope. *S. Sundaram Pillai* (1985) also set out the objects of an explanation.

**(i) Schedule** A schedule is the **appendix** to an Act (forms, lists, details). It is **part of the statute** and is read with it. If the schedule **conflicts** with the main body of the Act, the **main body prevails** (***Aphali Pharmaceuticals v. State of Maharashtra*, 1989**).

**(j) Punctuation** Older courts gave punctuation **little weight**, because it was not enacted (*Aswini Kumar Ghosh*, 1952). In modern, carefully drafted statutes, punctuation **can matter** (*Mohd. Shabbir v. State of Maharashtra*, 1979, where a comma affected the meaning).

**(k) The statute as a whole** Under the maxim ***ex visceribus actus***, the statute is construed from within itself, reading all its parts together.

## 2. External aids

**(a) Parliamentary history: debates and proceedings in the legislature** This includes speeches made while a Bill was debated, the **Statement of Objects and Reasons**, committee reports, and amendments that were proposed.

**English position**

- The traditional **exclusionary rule** said courts could not look at Parliamentary debates.
- ***Pepper v. Hart* (1993)** relaxed this. **Hansard** (the record of debates) may be used where:
    1. the law is **ambiguous**, obscure, or leads to absurdity;
    2. the statement relied on was made by a **Minister or the promoter** of the Bill;
    3. the statement is **clear**.

**Indian position**

- Earlier cases did **not** allow debates to be used (*Aswini Kumar Ghosh*, 1952).
- The **Statement of Objects and Reasons** may be used to understand the **background and the mischief**, but **not** to control the meaning of the words (*State of W.B. v. Subodh Gopal Bose*, 1954).
- ***K.P. Varghese v. ITO* (1981)**: the **Finance Minister's speech** introducing the Bill was used to interpret s.52(2) of the Income Tax Act.
- ***R.S. Nayak v. A.R. Antulay* (1984)**: reports of committees and the Law Commission may be used to find the mischief. Parliamentary history may also be used where the words are ambiguous.
- *Kesavananda Bharati* and *Indra Sawhney* referred to the **Constituent Assembly Debates**.

**Present position:** Parliamentary history is a **useful aid** for understanding context and purpose, but it is **not conclusive**.

**(b) Socio-economic and technological developments** A statute is "**always speaking**". It should be read in the light of **present conditions** (this is called **updating** or dynamic construction).

- ***State of Punjab v. Amritsar Beverages* (2006)**: "**books of account**" included **computer hard discs**.
- *Senior Electric Inspector v. Laxminarayan Chopra* (1962): "telegraph line" included **wireless**.
- *National Textile Workers' Union v. P.R. Ramakrishnan* (1983): law cannot stand still while society changes.

**(c) Reference to other statutes**

- **Statutes in pari materia** (on the **same subject**) are read **together** as one system (*State of Madras v. Vaidyanatha Iyer*, 1958).

- **Earlier and repealed statutes** show the mischief the new law was meant to address.
- **Later statutes** may explain an earlier ambiguous one.
- Definitions borrowed from **unrelated** statutes are used **cautiously**.

**(d) International conventions** Where domestic law is **silent or ambiguous**, courts may use **international conventions** India has signed, as long as they are **consistent with domestic law** (Arts. 51(c) and 253).

- ***Vishaka v. State of Rajasthan* (1997)**: **CEDAW** was used to frame guidelines against sexual harassment at the workplace.
- ***Jolly George Varghese v. Bank of Cochin* (1980)**: the **ICCPR** was used to interpret the CPC on arrest for debt.
- *NALSA v. UOI* (2014): international principles were used to recognise the rights of transgender persons.
- *PUCL v. UOI* (1997): telephone tapping.

**(e) Committee reports and Law Commission reports** These help identify the **mischief and the purpose** of the law (*R.S. Nayak*, 1984; *Rosy v. State of Kerala*, 2000; *Santa Singh v. State of Punjab*, 1976).

**(f) Other external aids**

- **Dictionaries**: used for the ordinary meaning of words that are not defined, but the **context prevails** over the dictionary.
- **Textbooks**, **foreign decisions**, and **historical background**.
- **Contemporaneous exposition**: how the law was understood when it was made (*contemporanea expositio est optima et fortissima in lege*).
- **Usage**: long-established practice.

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# MODULE 4: APPROACHES, RESTRAINTS AND PRESUMPTIONS IN INTERPRETATION

## 1. Theoretical and ideological approaches

Judges approach statutes with different **theories** of interpretation:

1. **Textual / literal**: the text is supreme.
2. **Intentionalist**: find what the legislature actually intended when it enacted the law.
3. **Purposive / teleological**: read the law to achieve its purpose.
4. **Dynamic / evolutive**: the law adapts to changing times.
5. **Sociological** (Roscoe Pound): law as a tool of **social engineering**, so interpretation should promote social welfare.
6. **Realist**: law is what judges actually decide.
7. **Natural law**: interpretation should be consistent with justice and morality.

The judge's **ideology** (liberal, conservative, rights-oriented, welfare-oriented) also influences which approach they choose.

## 2. Judicial activism and judicial restraint

**Judicial activism** Courts take an **active role**: they go beyond the literal text to protect **rights**, fill **gaps** left by the legislature, and hold the executive accountable.

Indian examples:

- ***Golak Nath* (1967)**;
- ***Kesavananda Bharati* (1973)**: the basic structure doctrine;
- ***Maneka Gandhi* (1978)**: expansion of Art. 21;
- **Public interest litigation**: *S.P. Gupta* (1981), *Hussainara Khatoon* (1979), the *M.C. Mehta* environmental cases;
- ***Vishaka* (1997)**: guidelines in the absence of legislation;
- *Olga Tellis* (1985): the right to livelihood;
- ***K.S. Puttaswamy* (2017)**: the right to privacy;
- ***Navtej Singh Johar* (2018)**.

**Merits:** protects rights, gives voice to the weak, ensures accountability. **Criticism:** called **judicial overreach** or "judicial legislation". It is said to violate the separation of powers, and judges are **not elected**.

**Judicial restraint** Judges **defer to the legislature and executive**. They decide only what is necessary, **presume laws are constitutional**, and do not replace policy choices with their own views.

Examples:

- *A.K. Gopalan* (1950);
- ***Divisional Manager, Aravali Golf Club v. Chander Hass* (2008)**: Justice Katju warned judges to know their limits and not try to run the government;
- *Almitra Patel v. UOI* (2000).

**Juristic activism and juristic restraint** These terms describe the approach of **legal scholars (jurists)** rather than judges.

- **Juristic activism**: scholars who favour **creative, reform-oriented** interpretation. Examples: Upendra Baxi on PIL; Ronald Dworkin's idea of the judge as "Hercules" who seeks the best interpretation of the law as a whole.
- **Juristic restraint**: scholars who favour **positivist** interpretation, where judges declare the law but do not make it. Examples: H.L.A. Hart and John Austin.

**Conclusion:** a **balance** is needed. Activism is justified when fundamental rights are at stake or the other branches have failed. Restraint is the normal rule, out of respect for the **separation of powers**.

## 3. Presumptions in interpretation

Courts assume certain things about legislative intention **unless the statute clearly says otherwise**.

**(a) Presumption against ousting established jurisdiction** The jurisdiction of **civil courts** is not lightly taken away. Any exclusion must be **express or clearly implied** (CPC s.9).

***Dhulabhai v. State of M.P.* (1969)** laid down the principles:

- When a statute makes a tribunal's order **final**, civil court jurisdiction is excluded **only if** an **adequate alternative remedy** is provided.
- Even then, a civil court can step in where the tribunal **did not follow the Act** or the basic principles of judicial procedure.
- A challenge that the Act is **ultra vires** can still be brought in a civil court.
- Exclusion of jurisdiction is **not readily inferred**.

See also *Secretary of State v. Mask & Co.* (1940).

Clauses saying an order "**shall be final**" or "**shall not be questioned in any court**" **cannot exclude** the writ jurisdiction of the High Courts and the Supreme Court under **Arts. 226 and 32**, because **judicial review is part of the basic structure** (***L. Chandra Kumar v. UOI*, 1997**).

**(b) Presumption against creating new jurisdiction or enlarging existing jurisdiction** Courts presume the legislature does **not** intend to create **new jurisdiction** or **enlarge** the jurisdiction of an existing court, unless it uses **clear words**. Provisions conferring jurisdiction are **strictly construed**.

- ***A.R. Antulay v. R.S. Nayak* (1988)**: even the Supreme Court cannot confer jurisdiction on a court where the statute has not given it.
- *Kiran Singh v. Chaman Paswan* (1954): a decree passed by a court without jurisdiction is a **nullity**.

**(c) Presumption about territorial extent of jurisdiction** A legislature is presumed to legislate **only for its own territory**.

- **Parliament** may make laws with **extra-territorial operation** (Art. 245(2)), especially where there is a connection with India (*GVK Industries v. ITO*, 2011).
- **State laws** are valid outside the State's borders only where there is a **sufficient territorial nexus**. ***State of Bombay v. R.M.D.C.* (1957)**: a prize competition run from a Bangalore newspaper and circulated in Bombay had a sufficient nexus with Bombay. See also *Tata Iron & Steel Co. v. State of Bihar* (1958).

**(d) Presumption against violation of international law** Statutes are presumed to be **consistent with international law** and India's **treaty obligations**. Where two readings are possible, the one consistent with international law is preferred. But if the statute is **clear** and conflicts with international law, the **statute prevails**.

***Gramophone Co. of India v. Birendra Bahadur Pandey* (1984)** adopted the **doctrine of incorporation**: rules of international law are part of national law **unless they conflict with an Act of Parliament**.

**Other presumptions**

- against **retrospective** operation;
- against **absurdity and injustice**;
- against taking away **vested rights**;
- that **mens rea** is required in criminal offences;
- that a statute **does not bind the State** unless it says so expressly or by necessary implication;
- in favour of **constitutionality**;
- that the legislature does not use **words without meaning**.

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# MODULE 5: MODES OF INTERPRETATION OF THE CONSTITUTION

## 1. How constitutional interpretation differs from statutory interpretation

The Constitution is the **supreme law** (the *grundnorm*). It is a **living, organic document** meant to last for generations and to govern unforeseen situations. It must therefore be interpreted **broadly, liberally and purposively**, not like an ordinary statute.

Chief Justice Marshall in ***McCulloch v. Maryland* (1819)**: "we must never forget that it is **a constitution** we are expounding", one "intended to endure for ages to come."

| Constitution | Ordinary statute |
|---|---|
| Supreme law | Subordinate to the Constitution |
| Interpreted liberally and dynamically | Interpreted according to the rules for its type (often strictly) |
| Involves political, social and moral values | Mostly technical |
| Hard to amend; basic structure limits apply | Easy to amend |

Indian cases: *Kesavananda Bharati* (1973); *Maneka Gandhi* (1978); *M. Nagaraj v. UOI* (2006), which described the Constitution as a living document.

## 2. Approaches to constitutional interpretation

**(a) Textualist** Focuses on the **words** of the text. ***A.K. Gopalan* (1950)** read "**procedure established by law**" in Art. 21 literally, to mean any procedure laid down by an enacted law. This was later rejected in *Maneka Gandhi*.

**(b) Originalist** Seeks the meaning the framers intended **at the time of framing**. It is popular in the USA (Justice Scalia) but used **sparingly** in India.

**(c) Harmonious construction** Reconciles different provisions. Examples: reconciling **Fundamental Rights and Directive Principles** (*Re Kerala Education Bill*, 1957; ***Minerva Mills*, 1980**).

**(d) Historical interpretation** Looks at the **historical background**: the freedom struggle, the Government of India Act 1935, and the making of the Constitution.

**(e) Constituent Assembly Debates (CAD)**

- **Earlier view:** *A.K. Gopalan* (1950) held the debates should not be used to interpret the text, though they could be referred to for historical background.
- **Later view:** the debates are a **legitimate aid** to understanding the framers' intention. Used in *Kesavananda Bharati* (1973), *Indra Sawhney* (1992), the ***Second Judges Case* (1993)**, and *S.R. Bommai* (1994).
- They are an aid, **not binding**.

**(f) Structuralist interpretation** Reasons from the **structure** of the Constitution: federalism, separation of powers, democracy, and the relationships between institutions. The **basic structure doctrine** is the best example.

**(g) Pith and substance** When a law passed by one legislature **incidentally touches** a subject in another legislature's list (Seventh Schedule), the court looks at the **true nature and character** (pith and substance) of the law. If, in substance, the law falls within the enacting legislature's competence, it is **valid** even though it incidentally affects the other field.

- ***Prafulla Kumar Mukherjee v. Bank of Commerce, Khulna* (1947)**: a State moneylending law that incidentally affected promissory notes (a Union subject) was upheld.
- ***State of Bombay v. F.N. Balsara* (1951)**: the Bombay Prohibition Act was upheld even though it affected imports.
- The related doctrine of **colourable legislation** says a legislature cannot do **indirectly** what it cannot do directly (*K.C. Gajapati Narayan Deo v. State of Orissa*, 1953).

**(h) Occupied field and repugnancy (Art. 254)** For subjects in the **Concurrent List**, if a State law is **repugnant** to a Union law, the **Union law prevails** to the extent of the repugnancy. A State law that has received the **President's assent** prevails within that State (Art. 254(2)).

Tests of repugnancy (***M. Karunanidhi v. UOI*, 1979**; *Deep Chand v. State of U.P.*, 1959):

1. there is a **direct conflict** between the two laws; or
2. Parliament intended its law to be a **complete code** (it "occupies the field"); or
3. both laws deal with the **same subject matter**.

**(i) Residuary power** Under **Art. 248** and **Entry 97 of List I**, Parliament has power over any matter not listed in the State or Concurrent Lists.

- ***Union of India v. H.S. Dhillon* (1972)**: wealth tax including agricultural land was upheld under the residuary power.
- *Kartar Singh v. State of Punjab* (1994): TADA was upheld partly under the residuary power.

**(j) Amending power (Art. 368)** How far can Parliament amend the Constitution?

- *Shankari Prasad* (1951) and *Sajjan Singh* (1965): Parliament could amend **any part**, including Fundamental Rights.
- ***Golak Nath* (1967)**: Parliament **cannot amend Fundamental Rights**.
- ***Kesavananda Bharati* (1973)**: Parliament can amend any part but **cannot destroy the basic structure**.
- ***Minerva Mills* (1980)**: a **limited** amending power is itself part of the basic structure.
- *I.R. Coelho* (2007): laws placed in the Ninth Schedule are open to basic structure review.
- *Fourth Judges Case* (2015): the NJAC amendment was struck down.

**(k) Moral reasoning and national ethos** Interpretation guided by **constitutional morality**: the core values of dignity, liberty, equality and fraternity.

- ***Navtej Singh Johar* (2018)**: **constitutional morality prevails over popular or social morality**.
- *Sabarimala case* (2018).
- *Joseph Shine v. UOI* (2018).
- *Manoj Narula v. UOI* (2014).

**(l) Directive Principles as a source of interpretation** DPSPs are **not enforceable** in court (Art. 37), but they are "**fundamental in the governance**" of the country. Courts use them to **give content to Fundamental Rights** and to judge whether restrictions are **reasonable**.

- *State of Madras v. Champakam Dorairajan* (1951): DPSPs were treated as subordinate to FRs.
- Later cases moved to harmonising them:
  - ***Minerva Mills* (1980)**: the balance between FRs and DPSPs is part of the basic structure;
  - ***Unni Krishnan* (1993)**: the right to education was read into Art. 21;
  - *Olga Tellis* (1985): livelihood;
  - *Bandhua Mukti Morcha* (1984);
  - *State of Gujarat v. Mirzapur Moti Kureshi Kassab Jamat* (2005): Art. 48 was used to uphold a ban on cow slaughter.

**(m) Stare decisis** Courts follow **precedent** for certainty and consistency.

- **Art. 141**: the law declared by the Supreme Court **binds all courts** in India.

- The **ratio decidendi** binds; **obiter dicta** are only persuasive.
- A **larger bench binds smaller benches**. A bench of equal strength that disagrees must **refer** the question to a larger bench (*Central Board of Dawoodi Bohra Community v. State of Maharashtra*, 2005).

## 3. Pragmatism, the techniques of innovation, and overruling

**Pragmatist interpretation** The judge considers the **practical consequences** of a decision: what works best for society. It is associated with **Holmes and Posner**. Many Indian PIL and environmental decisions reflect pragmatism.

**Techniques of innovation (or subversion) of stare decisis** These are the methods judges use to **avoid being bound** by an earlier precedent:

1. **Distinguishing**: the facts of the present case are materially different.
2. **Per incuriam**: the earlier decision ignored a statute or a binding precedent.
3. **Sub silentio**: the point in question was not argued or considered.
4. **Treating the earlier statement as obiter**, not ratio.
5. **Narrowing** the ratio to its facts.
6. **Changed circumstances**.
7. **Reference to a larger bench**.
8. **Overruling**.
9. **Prospective overruling**.

**The Supreme Court's power to overrule** The Supreme Court is **not bound by its own earlier decisions** (***Bengal Immunity*, 1955**). It may overrule a decision that is clearly wrong, through a **larger bench**. Examples:

- *Golak Nath* was overruled by *Kesavananda*;
- *A.K. Gopalan* was effectively overruled by *Maneka Gandhi*;
- ***ADM Jabalpur* (1976)** was overruled by *Puttaswamy* (2017);
- *Suresh Kumar Koushal* (2013) was overruled by *Navtej Johar* (2018).

**Prospective overruling** The new rule applies **only to the future**. Past transactions decided under the old rule are left undisturbed. The doctrine comes from American law.

***Golak Nath* (1967)** applied it for the first time in India. It held that Parliament could not amend Fundamental Rights **in future**, but the earlier amendments (the 1st, 4th and 17th) **remained valid**. It set these limits:

- it applies only to **constitutional matters**;
- only the **Supreme Court** can use it;
- the extent of retrospective effect is in the court's discretion.

Later cases extended it, including to statutes: *India Cement v. State of T.N.* (1990); *Ashok Kumar Gupta v. State of U.P.* (1997); *Somaiya Organics v. State of U.P.* (2001).

**Retrospective overruling** Under the traditional **declaratory theory** (Blackstone), judges do not make law; they only **declare** what it always was. So when a precedent is

overruled, the new rule applies **retrospectively**, as if it had always been the law. Cases already finally decided (res judicata) are not reopened.

In India, overruling is **ordinarily retrospective**. It is prospective only if the court **expressly** says so (*M.A. Murthy v. State of Karnataka*, 2003).

## 4. Advisory jurisdiction and precedent

Under **Art. 143**, the **President** may refer a question of **law or fact** of public importance to the Supreme Court. The Court **may** give its opinion. It must be heard by at least **five judges** (Art. 145(3)). The Court can **decline** to answer (*Ismail Faruqui*, 1994, on the Ayodhya reference).

**Is an advisory opinion binding?**

- ***Re Special Courts Bill* (1978)**: the opinion does **not bind the President**, but it carries **great weight** and **binds lower courts** under Art. 141.
- ***Re Cauvery Water Disputes Tribunal* (1991)**: the opinion deserves respect and is **binding like any law declared** by the Supreme Court.
- In practice, the Government always follows it. Examples: the ***Third Judges Case* (Special Reference No. 1 of 1998)**, *Keshav Singh* (1964), *Re Berubari* (1960), *Re Kerala Education Bill* (1957), and the 2G natural resources reference (2012).

## 5. Objections to judicial review as anti-majoritarian

**The objection.** Alexander Bickel called this the "**counter-majoritarian difficulty**". When **unelected judges** strike down laws passed by **elected representatives**, they **override the will of the majority**, which seems **undemocratic**. Critics also argue that judicial review:

- weakens the separation of powers;
- lets judges impose their **personal values**;
- leads to **judicial supremacy**.

The NJAC judgment (2015), which struck down an amendment passed almost unanimously, is often cited as an example.

**The answers**

1. **The Constitution itself is the will of the people**, a higher law. When courts enforce it against a temporary majority, they enforce the people's deeper will (Hamilton in *Federalist No. 78*; *Marbury v. Madison*, 1803).
2. Judicial review **protects minorities and fundamental rights** from the "**tyranny of the majority**".
3. **John Hart Ely** argued that courts **reinforce democracy** by keeping the political process open and fair.
4. **Dworkin** described courts as a "**forum of principle**", where rights are decided on principle rather than politics.

5. In India, judicial review is **expressly provided** for (Arts. 13, 32, 226) and is part of the **basic structure** (*Kesavananda*; *Indira Gandhi v. Raj Narain*, 1975; *Minerva Mills*, 1980; *L. Chandra Kumar*, 1997).
6. Courts limit themselves through **self-restraint** and the **presumption of constitutionality**.

**Conclusion:** judicial review is a necessary part of **constitutional democracy**, as long as it is exercised with **restraint and principled reasoning**.

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# MODULE 6: CONSTRUCTION OF PENAL, TAXING AND REMEDIAL STATUTES

## 1. Strict construction of taxing statutes

**Rule.** Tax can be imposed **only by clear words**. Courts do not use **intendment, equity or presumption** in favour of a tax. If the words are **ambiguous**, the benefit goes to the **taxpayer**. Under **Art. 265**, no tax may be levied or collected **except by authority of law**.

Rowlatt J. in ***Cape Brandy Syndicate v. IRC* (1921)**: "In a taxing Act one has to look merely at what is clearly said. There is no room for any intendment. There is no equity about a tax. There is no presumption as to a tax. Nothing is to be read in, nothing is to be implied."

**Indian cases**

- ***A.V. Fernandez v. State of Kerala* (1957)**: if a person falls within the **letter of the law**, they must pay, however great the hardship. If they do not, they cannot be taxed, however much the case seems to fall within the **spirit** of the law.
- ***Mathuram Agrawal v. State of M.P.* (1999)**: the **charging provision** must clearly state **who** is taxed, **what** is taxed, and at **what rate**.
- *Govind Saran Ganga Saran v. CST* (1985): the four components of a tax (the taxable event, the person taxed, the rate, and the measure of value) must all be clear.

**Exemption notifications *Commissioner of Customs v. Dilip Kumar & Co.* (2018, Constitution Bench)** held:

- exemption provisions are interpreted **strictly**;
- the **burden** of showing that the exemption applies is on the **assessee**;
- any **ambiguity in an exemption is resolved in favour of the revenue**, not the taxpayer.

This overruled *Sun Export* (1997). Once eligibility is established, however, the exemption is applied **liberally**.

**Machinery provisions** (those dealing with assessment and collection) are construed **liberally**, so that the tax can actually be collected.

**Tax avoidance.** *McDowell & Co. v. CTO* (1985) held that **colourable devices** are not legitimate tax planning. ***Azadi Bachao Andolan* (2003)** and ***Vodafone* (2012)** held that **genuine tax planning** is permissible.

## 2. Strict construction of penal statutes and its limits

**Rule.** Penal statutes are construed **strictly in favour of the accused**. If two reasonable interpretations are possible, the court adopts the one that is **more lenient** to the accused (the **rule of lenity**). No one is punished unless the case falls **clearly within the words** of the statute.

**Basis**

- the maxim ***nullum crimen sine lege, nulla poena sine lege*** (no crime and no punishment without law);
- Arts. 20(1) and 21;
- the citizen is entitled to **fair notice** of what is forbidden;
- the **legislature, not the court**, defines crimes.

**Cases**

- ***Tolaram Relumal v. State of Bombay* (1954)**: where two reasonable constructions are possible, the court must choose the one that **exempts the subject from penalty**.
- ***W.H. King v. Republic of India* (1952)**: a provision of the Bombay Rent Act penalising a "premium" was strictly construed.
- ***Sakshi v. UOI* (2004)**: the court refused to widen the definition of rape by interpretation. That was a matter for the legislature.

**Limits of the rule**

1. Strict construction does **not** allow the court to defeat the **obvious intention** of the legislature or to adopt a **strained or unnatural** meaning.
2. It applies only where **real ambiguity** remains after using all other aids.
3. In **socio-economic offences** (food adulteration, hoarding, economic crimes), courts prefer a **purposive** reading that suppresses the mischief.
    - ***Murlidhar Meghraj Loya v. State of Maharashtra* (1976)**;
    - ***M.V. Joshi v. M.U. Shimpi* (1961)**: "butter" included butter made from curd;
    - *Kanwar Singh* (1965);
    - *Alamgir* (1959).
4. **Vague penal laws** may be struck down as unconstitutional (*Kartar Singh*, 1994; ***Shreya Singhal v. UOI*, 2015**, striking down s.66A of the IT Act).

## 3. Mens rea in statutory offences and the BNS

**Meaning.** ***Actus non facit reum nisi mens sit rea***: an act does not make a person guilty unless the mind is also guilty.

**Presumption. Mens rea is presumed to be required** for every offence, **unless the statute excludes it expressly or by necessary implication**.

- ***Sherras v. De Rutzen* (1895)**.
- ***Sweet v. Parsley* (1970)**: a landlady who did not know her tenants were using cannabis on the premises was **not guilty**.
- *Brend v. Wood* (1946).

**Indian cases**

- ***Nathulal v. State of M.P.* (1966)**: a dealer stored foodgrains while his licence application was pending, honestly believing it was allowed. He was **acquitted**, because mens rea was required and was absent.
- ***State of Maharashtra v. Mayer Hans George* (1965)**: a passenger carrying gold **in transit** through India was **convicted** under foreign exchange and customs law, although he did not know of the RBI notification. Mens rea was **excluded by necessary implication** given the object of the law.
- *Ranjit D. Udeshi* (1965): knowledge of obscenity was not required for selling an obscene book.
- *Sarjoo Prasad* (1961): a servant was liable for selling adulterated food without knowledge.

**Strict liability offences** (no mens rea needed) are usually **regulatory or public welfare** offences: food and drugs, pollution, traffic, weights and measures, and some economic offences. The penalties are usually small.

**Mens rea under the BNS** The BNS does not use the term “mens rea”, but it uses mental-element words: **“intentionally”, “knowingly”, “voluntarily”, “dishonestly”, “fraudulently”, “rashly”, “negligently”, “reason to believe”**. Examples:

- murder requires **intention or knowledge**;
- theft requires **dishonest intention**;
- cheating requires acting **fraudulently or dishonestly**.

The **General Exceptions** (ss.14–44) recognise the **absence of a guilty mind**: mistake of fact, accident, a child under 7 (s.20), an immature child between 7 and 12 (s.21), unsoundness of mind (s.22), and involuntary intoxication.

Some offences are effectively **strict liability**. For example, in sexual offences against a girl under 18, consent is immaterial. In kidnapping, the accused’s belief about the victim’s age is no defence (*R v. Prince*, 1875).

## 4. Vicarious liability in statutory offences

**General rule.** In criminal law there is **no vicarious liability**. A person is punished only for **their own act** done with **their own guilty mind**. The maxim *qui facit per alium facit per se* (whoever acts through another acts himself) belongs to **civil law**, not criminal law.

**Exception.** A **statute** may expressly or impliedly make one person liable for another's act.

**(a) Offences by companies.** Many statutes provide that when a company commits an offence, **every person in charge of and responsible for its business** at the time is also deemed guilty, unless they prove **lack of knowledge** or **due diligence**. Examples:

- NI Act s.141;
- Food Safety Act s.66;
- Environment (Protection) Act s.16;
- Drugs and Cosmetics Act s.34;
- IT Act s.85.

**(b) Employer and employee.** For example, a licence holder may be liable for the acts of their servants.

**Cases**

- ***Mousell Bros. v. London & North Western Railway* (1917)**: a company was liable for false invoices made by its manager. Whether vicarious liability applies depends on the **object and words of the statute**, the **nature of the duty**, and **who would ordinarily perform it**.
- ***Sarjoo Prasad v. State of U.P.* (1961)**: a servant who sold adulterated oil was liable even without knowledge.
- ***State of Maharashtra v. Syndicate Transport* (1964)**: a company can be criminally liable.
- ***Standard Chartered Bank v. Directorate of Enforcement* (2005)**: a company can be prosecuted even for offences carrying **mandatory imprisonment**; a fine is imposed instead.
- ***Iridium India v. Motorola* (2011)**: a company can have mens rea through its **"directing mind and will"** (the doctrine of attribution).
- ***Aneeta Hada v. Godfather Travels* (2012)**: under NI Act s.141, a director can be prosecuted only if **the company is also made an accused**.
- ***Sunil Bharti Mittal v. CBI* (2015)**: a director is **not automatically liable** for the company's offence unless the statute says so or there is evidence of **active personal involvement**.
- *S.M.S. Pharmaceuticals v. Neeta Bhalla* (2005): the complaint must **specifically state** that the director was in charge of and responsible for the business.

## 5. Remedial vs penal statutes

**Remedial (beneficial or welfare) statutes** provide a **remedy or benefit**, or improve the condition of a class of people. Examples: Workmen's Compensation, Industrial Disputes, Maternity Benefit, Payment of Gratuity, Consumer Protection, Domestic Violence, and Rent Control Acts.

**Penal statutes** impose **punishment** (fines, imprisonment, forfeiture). Examples: the BNS and NDPS Act.

| Remedial statute | Penal statute |
|---|---|
| Gives a remedy or benefit | Imposes punishment |
| Construed **liberally**, in favour of the beneficiaries | Construed **strictly**, in favour of the accused |
| Doubt is resolved in favour of the beneficiaries | Doubt is resolved in favour of the accused |
| Can be retrospective | Cannot be retrospective to the accused's prejudice (Art. 20(1)) |

A single Act may contain **both** kinds of provision, and each part is read according to its nature.

### 6. Liberal construction of remedial statutes

**Rule.** Beneficial legislation is read **liberally** so as to **advance the remedy and suppress the mischief**. Where two meanings are possible, the court chooses the one that **helps the intended beneficiaries**.

**Limit.** Liberal construction cannot **rewrite the statute** or extend the benefit to people the statute clearly excludes.

**Cases**

- ***Alembic Chemical Works v. Workmen* (1961)**: in welfare legislation, prefer the interpretation that **benefits the workers**.
- *Workmen of American Express v. Management* (1985): Sundays were counted as working days for gratuity.
- *B. Shah v. Labour Court* (1977): Sundays were included in computing maternity benefit.
- ***Union of India v. Prabhakaran Vijaya Kumar* (2008)**: an accidental fall from a train was held to be an "**untoward incident**" under the Railways Act, so compensation was payable.
- *Bharat Singh v. Management of New Delhi Tuberculosis Centre* (1986).
- *Bangalore Water Supply v. A. Rajappa* (1978): a wide meaning was given to "industry".

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## MODULE 7: COMMENCEMENT, OPERATION, EXPIRY AND REPEAL OF STATUTES

### 1. Commencement

A statute comes into force on:

1. the **date stated in the Act**; or
2. the **date notified by the Government** in the Official Gazette (different dates may be fixed for different provisions); or

3. if no date is given, the **date of assent** (GCA s.5).

It takes effect from the **midnight** at the beginning of that day.

**Courts cannot compel** the Government to bring an Act into force (***A.K. Roy v. UOI*, 1982**; *Aeltemesh Rein v. UOI*, 1988).

**Delegated legislation must be published** before it takes effect. Without publication it does not come into force (***Harla v. State of Rajasthan*, 1951**).

Example: the BNS, BNSS and BSA came into force on **1 July 2024** by notification.

## 2. Prospective, retrospective and retroactive operation

- **Prospective:** applies only to **future** acts, after the law begins. **This is the presumption** (*nova constitutio futuris formam imponere debet, non praeteritis*: a new law governs the future, not the past).
- **Retrospective:** applies to **past** acts and transactions. It may take away vested rights or impose new liabilities for things already done. It is **never presumed**. It must be **express or necessarily implied**.
- **Retroactive:** some writers distinguish this. The law operates only **for the future**, but it **relies on past facts**. Example: a law disqualifying persons convicted in the past from contesting **future** elections.

**Rules on retrospectivity**

1. **Substantive laws** (those affecting rights and liabilities) are **prospective** unless clearly stated otherwise. The **right of appeal is a vested right**, so a later law cannot take it away from a case already begun (***Garikapati Veeraya v. N. Subbiah Choudhry*, 1957**).

2. **Procedural laws** are generally **retrospective** and apply to pending cases, because **no one has a vested right in procedure**. The exception is where a procedural change affects vested rights or creates new disabilities (***Hitendra Vishnu Thakur v. State of Maharashtra*, 1994**).

3. **Penal laws cannot be retrospective** to the accused's **prejudice** (Art. 20(1)): no one can be convicted for an act that was not an offence when done, or given a heavier penalty than the law then allowed. But a **beneficial** penal law can apply retrospectively in the accused's favour.

    - ***Rattan Lal v. State of Punjab* (1965)**: the Probation of Offenders Act was applied to an offence committed before it came into force.
    - *T. Barai v. Henry Ah Hoe* (1983): a reduction in punishment benefits the accused.

4. **Declaratory and clarificatory laws** are retrospective, since they only declare what the law always was (*Zile Singh v. State of Haryana*, 2004).

5. **Validating laws** are retrospective. They can **remove the basis** of a court judgment, but the legislature **cannot simply overrule a judgment** (*S.R. Bhagwat*, 1995; *Madras Bar Association*, 2021).

6. **Taxing laws** can be retrospective if clearly stated, subject to Arts. 14 and 19. The 2012 Vodafone-related retrospective tax amendment was withdrawn in 2021.

7. ***CIT v. Vatika Township* (2014, Constitution Bench)**: the presumption against retrospectivity rests on **fairness**. People should be able to plan their affairs under the law as it stands.

## 3. Perpetual and temporary statutes

- A **perpetual statute** has **no fixed period**. It lasts until it is **repealed**. "Perpetual" does not mean it can never be repealed.
- A **temporary statute** lasts for a **fixed period** and **expires automatically** at the end of it, unless extended. Examples:
    - TADA (1985–1995);
    - annual Finance Acts;
    - **Ordinances**, which lapse **six weeks after the legislature reassembles** (Arts. 123 and 213) unless replaced by an Act.

A temporary Act may be **extended** by a new law passed **before** it expires. Once it has expired, it can only be brought back by a **fresh enactment**.

## 4. Effect of expiry of temporary statutes

1. **GCA s.6 does not apply to expiry.** Section 6 protects pending proceedings and liabilities only on **repeal**, and expiry is not repeal. So when a temporary Act expires, **pending prosecutions lapse**, and **no new prosecution** can be started for offences committed while it was in force, **unless the Act contains a saving clause**.
    - ***State of Orissa v. Bhupendra Kumar Bose* (1962)**: this is the general rule. But whether **rights and liabilities** survive also depends on the **construction of the particular statute**. Some may survive even without a saving clause.
    - ***Rayala Corporation v. Director of Enforcement* (1969)**: after a FERA rule lapsed, proceedings under it could not continue, since s.6 does not apply to expiry or omission.
2. **Things already done and completed** under the Act remain **valid**.
3. **Rules, orders and notifications** made under the Act **lapse** with it.
4. **Persons detained** under an expired detention law must be **released**.
5. If a temporary Act is **repealed before it expires**, **s.6 does apply**, because that is a repeal.
6. **Ordinances. *Krishna Kumar Singh v. State of Bihar* (2017, seven judges)**: rights and liabilities created by an Ordinance **do not automatically survive** its lapse. The test is **public interest and constitutional necessity**. **Repeated re-promulgation** of Ordinances is a **fraud on the Constitution** (also *D.C. Wadhwa v. State of Bihar*, 1987).
7. **Omission vs repeal.** Is removing a provision ("omission") a repeal that attracts s.6?

- *Rayala* (1969) and *Kolhapur Canesugar Works v. UOI* (2000) said **no**.
- ***Fibre Boards (P) Ltd. v. CIT* (2015)** held that omission **is a kind of repeal**, so s.6 applies. *Shree Bhagwati Steel Rolling Mills* (2016) agreed.

## 5. Express and implied repeal

**Express repeal.** The new Act **expressly states** that the old law is repealed ("is hereby repealed", "shall cease to have effect"). Examples:

- **BNS s.358** repealed the IPC;
- **BNSS s.531** repealed the CrPC;
- **BSA s.170** repealed the Evidence Act.

Repealing and Amending Acts are used periodically to clear obsolete laws from the statute book.

**Implied repeal.** No words of repeal are used, but the new law is **so inconsistent** with the old one that **both cannot stand together**. The later law prevails to the extent of the conflict (*leges posteriores priores contrarias abrogant*: later laws abrogate earlier contrary laws).

Courts **presume against implied repeal**. The legislature is taken to know the existing law, and if it meant to repeal it, it would have said so. The court first tries to **harmonise** the two laws.

**Tests for implied repeal** (*Zaverbhai Amaidas v. State of Bombay*, 1954; ***Municipal Council, Palai v. T.J. Joseph*, 1963**):

1. Is there a **direct conflict**, so the two cannot stand together?
2. Did the legislature intend the new law to be a **complete code** on the subject?
3. Do both laws occupy the **same field**?

**Special and general laws.** ***Generalia specialibus non derogant***: a **later general law** does not impliedly repeal an **earlier special law** (*J.K. Cotton Spinning & Weaving Mills v. State of U.P.*, 1961; *Ethiopian Airlines v. Ganesh Narain Saboo*, 2011). A **later special law**, however, can override an earlier general one.

Repugnancy under **Art. 254** (Union and State laws in the Concurrent List) works like a form of implied repeal.

## 6. Consequences of repeal

**Common law position.** Under the old common law, a repealed statute was treated **as if it had never existed**, except for **completed transactions**. Pending proceedings failed. This was **harsh**, so **s.6 of the GCA** was enacted.

**GCA s.6.** Unless a **different intention** appears, a repeal does **not**:

- **(a) revive** anything not in force when the repeal takes effect;
- **(b)** affect the **previous operation** of the repealed law, or anything done under it;

- **(c)** affect any **right, privilege, obligation or liability** already **acquired, accrued or incurred**;
- **(d)** affect any **penalty, forfeiture or punishment** already incurred;
- **(e)** affect any **investigation, legal proceeding or remedy** relating to those rights and liabilities. These may be **started, continued and enforced** as if the repealing Act had not been passed.

**Principles**

1. **No revival.** If Act A repealed Act B, and Act A is later repealed, Act B does **not** come back unless the law says so (ss.6(a) and 7).
2. **Only accrued rights are saved.** A **mere hope or expectation**, or the bare right to take advantage of a repealed law, is not protected (*Abbott v. Minister for Lands*, 1895; *Lalji Raja & Sons*, 1971).
3. **Pending cases continue** under the old law, and **past offences can still be prosecuted** after repeal.
4. **Repeal and re-enactment. *State of Punjab v. Mohar Singh* (1955)**: when a law is repealed and re-enacted, s.6 applies **unless the new law shows a contrary intention**. The mere absence of a saving clause is **not** enough to exclude s.6. Prosecutions under the repealed Ordinance in that case could continue.
5. **References and continuity on re-enactment.**
    - **GCA s.8**: references to the repealed law are read as references to the re-enacted law.
    - **GCA s.24**: rules and orders made under the old law **continue** if consistent with the new one.
    - Example: BNSS s.531(2) **saves pending proceedings** under the CrPC.
6. **Repeal of an amending Act** does not undo the amendments it already made (s.6A; *Jethanand Betab v. State of Delhi*, 1960).
7. **Delegated legislation** made under a repealed Act **falls with it**, unless saved by s.24 or a saving clause.
8. **Unconstitutional laws.**
    - A law made **after** the Constitution that violates Fundamental Rights is **void from the start** (“still-born”) (*Deep Chand v. State of U.P.*, 1959).
    - A **pre-Constitution** law that is inconsistent with Fundamental Rights is only **eclipsed**. It **revives** if the inconsistency is later removed (the **doctrine of eclipse**, *Bhikaji Narain Dhakras v. State of M.P.*, 1955).

# INTERPRETATION OF STATUTES (LCC 0703) — Exam Answers

> Format: each syllabus topic is written as an exam question, followed by the answer: meaning, explanation, cases and conclusion. GCA means the General Clauses Act, 1897.

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## MODULE 1 — INTRODUCTION AND THE GENERAL CLAUSES ACT, 1897

### Q1. Interpretation: meaning, need and object

**Meaning**: interpretation is the process by which courts **ascertain the meaning of the legislature** through the words of a statute.

- **Salmond**: "the process by which the courts seek to ascertain the meaning of the legislature through the medium of authoritative forms in which it is expressed."
- The Latin maxim is *"Verba legis non est recedendum"*: the words of the law must not be departed from.

**Need**

1. **Ambiguity of language**: words have more than one meaning.
2. **Imperfect drafting**: the legislature cannot foresee every situation.
3. **Changing society**: new technology and social conditions (e.g. the internet or AI) arise that the drafters did not contemplate.
4. **General words**: these have to be applied to specific facts.
5. **Conflicting provisions**: provisions within an Act or between Acts must be harmonised.
6. **Complex legislation**: provisions must be read as a whole.

**Object**

- To find the **true intention of the legislature** (*Ut res magis valeat quam pereat*: it is better for a thing to have effect than to be made void).
- To **give effect to the purpose** of the law.
- To resolve ambiguity and fill gaps (to a limited extent).
- To ensure **certainty and justice**.
- *R.M.D. Chamarbaugwalla v. UOI* (1957): the court must ascertain the intention of the legislature from the words and the context.
- *Union of India v. Elphinstone Spinning & Weaving Co.* (2001): the intention of the legislature is to be found in the language used.

## Q2. Difference between interpretation and construction

| Interpretation | Construction |
|---|---|
| Finding the **meaning of words** used in the statute | Drawing **conclusions** about matters **beyond the direct expression** of the text, from its spirit |
| Concerned with the **language**: **linguistic** | Concerned with the **legal effect**: **legal** |
| Used when the words are clear | Used when the words are ambiguous, or there is a gap or uncertainty |
| The literal sense | The spirit and purpose |

- **Cooley**: "Interpretation is the art of finding out the true sense of any form of words. Construction is the drawing of conclusions respecting subjects that lie beyond the direct expression of the text."
- **Salmond**: interpretation is **grammatical** or **logical**.
- In practice, the two terms are **used interchangeably** by courts (*G.P. Singh*).

## Q3. Concept and classification of statutes

**Statute**: a written law enacted by a **competent legislature** (an Act of Parliament or a State legislature, an Ordinance, or delegated legislation).

### Classification

1. **By duration**: **perpetual** (no fixed period) and **temporary** (for a fixed period).
2. **By method**: **mandatory / imperative** (must be followed; non-compliance invalidates the act) and **directory** (substantial compliance is enough). *State of U.P. v. Manbodhan Lal Srivastava* (1957); *Sharif-ud-Din v. Abdul Gani Lone* (1980): the test is the intention of the legislature, the consequences of non-compliance, and the object of the statute.
3. **By object**:
    - **Codifying**: states the whole law on a subject (e.g. the Indian Contract Act).
    - **Consolidating**: brings together existing statutes (e.g. the CrPC).
    - **Declaratory**: removes doubts and declares the law.
    - **Remedial**: provides a remedy (e.g. the Workmen's Compensation Act).
    - **Amending**: changes an existing law.
    - **Repealing**: ends an existing law.
    - **Penal**: imposes punishment (e.g. the BNS).
    - **Taxing / fiscal**: imposes tax.
    - **Enabling**: confers powers.
    - **Disabling**: restricts rights.
    - **Validating**: cures defects in past acts.
4. **By extent**: **general** (applies to the whole community) and **local, personal or private**.
5. **By operation**: **prospective** and **retrospective**.

## Q4. General Clauses Act, 1897: preliminary, definitions, general rules of construction, powers and functionaries, orders and rules

**Object**: to **avoid repetition** of definitions and general provisions in every statute, to **shorten language**, and to bring **uniformity** in interpretation. It applies to all **Central Acts and Regulations** (made after its commencement), unless there is anything **repugnant in the subject or context**. States have their own General Clauses Acts. It also applies to the interpretation of the **Constitution** (Art. 367).

**Preliminary**: s.1 (short title and extent); s.2 (repeal).

**Definitions (s.3)** include:

- s.3(2) “act” includes **illegal omissions**;
- s.3(7) “Central Act”;
- s.3(18) “document”;
- s.3(22) “**good faith**”: done honestly, **whether negligently or not**;
- s.3(23) “Government”;
- s.3(26) “**immovable property**”;
- s.3(35) “month” means a British calendar month;
- s.3(36) “**movable property**”;
- s.3(38) “**offence**”;
- s.3(42) “**person**” includes any **company, association or body of individuals**, whether incorporated or not;
- s.3(51) “**State**”;
- s.3(56) “**sign**”;
- s.3(65) “**writing**”.

**General rules of construction**

- **s.4 / s.4A**: application of definitions to earlier Acts.
- **s.5**: **coming into operation**. Where no date is specified, a Central Act comes into operation on the **day it receives the assent** of the President (s.5(1)). Unless otherwise provided, it comes into operation **immediately on the expiration of the day preceding** its commencement, i.e. at **midnight** (s.5(3)).
- **s.6**: **effect of repeal** (see Module 7). Repeal does not revive anything not in force, does not affect the previous operation, rights, liabilities, penalties or pending proceedings, unless a different intention appears.
- **s.6A**: repeal of an Act making a textual amendment does not affect the continuance of the amendment.
- **s.7**: **revival** of repealed enactments only if expressly provided.
- **s.8**: construction of references to repealed enactments as references to the re-enacted provisions.
- **s.9**: **commencement and termination of time**. “From” **excludes** the first day, and “to” **includes** the last day.
- **s.10**: if the last day for doing an act falls on a day the **court or office is closed**, the act may be done on the **next working day**.
- **s.11**: measurement of distances (in a straight line on a horizontal plane).

- **s.12**: duty to be taken pro rata.
- **s.13**: **gender and number**. Words in the **masculine include the feminine**, and the **singular includes the plural** and vice versa.
- **s.13A**: references to the Sovereign.

**Powers and functionaries**

- **s.14**: powers conferred may be **exercised from time to time** as occasion requires.
- **s.15**: power to appoint includes power to appoint ex officio.
- **s.16**: **power to appoint includes the power to suspend or dismiss**.
- **s.17**: substitution of functionaries (a reference to the designation of an office).
- **s.18**: successors.
- **s.19**: official chiefs and subordinates.

**Orders, rules etc. made under enactments**

- **s.20**: construction of notifications, rules and orders. Expressions have the **same meaning as in the parent Act**.
- **s.21**: **power to issue includes power to add to, amend, vary or rescind** notifications, orders, rules or bye-laws (it does not apply to quasi-judicial orders) (*Indian National Congress (I) v. Institute of Social Welfare*, 2002).
- **s.22**: making of rules or bye-laws and issuing of orders between the passing and commencement of an enactment.
- **s.23**: rules to be made after **previous publication**.
- **s.24**: **continuation of orders, rules etc. issued under repealed enactments**, so far as not inconsistent with the new Act.

**Miscellaneous**

- **s.26**: where an act constitutes an offence under **two or more enactments**, the offender may be prosecuted under either, but **shall not be punished twice** for the same offence.
- **s.27**: **service by post** is deemed effected by properly addressing, pre-paying and posting by registered post.

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# MODULE 2 — GENERAL PRINCIPLES AND RULES OF INTERPRETATION

## Q5. Mimansa principles of interpretation (Indian Knowledge System). *(Important: newly added)*

**Meaning**: **Mimansa** (Purva Mimansa), founded by **Jaimini** (Mimansa Sutras, about 4th century BC) and explained by **Shabara, Kumarila Bhatta and Prabhakara**, was developed to **interpret Vedic texts** for the correct performance of rituals (yajnas). It was later used by Hindu jurists (Vijnaneshwara in the **Mitakshara**, Jimutavahana) to interpret

the Smritis. It is a **highly developed and rational** system, in many ways **more sophisticated** than the Maxwell principles.

**Revival in modern India**: **Justice Markandey Katju**, "The Mimansa Principles of Interpretation" (1993) 1 SCC (Jour) 16. Supreme Court cases include:

- **Udai Shankar Awasthi v. State of U.P.** (2013);
- **Ispat Industries Ltd. v. Commissioner of Customs** (2006): the **Gunapradhan axiom** was applied;
- *Mahavir Prasad v. …*; *Rajasthan State Industrial Development v. Diamond & Gem Development* (2013).

**The six principles (shadlinga) to determine the meaning of a text**

1. **Upakrama–Upasamhara**: the **beginning and the conclusion** must be harmonised.
2. **Abhyasa**: **repetition** shows emphasis.
3. **Apurvata**: **novelty**, i.e. what is new or unique in the text.
4. **Phala**: the **result or purpose**.
5. **Arthavada**: **praise or explanatory passages**.
6. **Upapatti**: **reasoning / logical consistency**.

**Means of interpretation (Shruti, Linga, Vakya, Prakarana, Sthana, Samakhya)**, in order of decreasing strength:

1. **Shruti**: the **direct statement / express text**. This is the literal rule.
2. **Linga**: the **indicative power of words / suggestion**. This is similar to the purposive approach.
3. **Vakya**: **syntactical connection**, i.e. the sentence as a whole.
4. **Prakarana**: **context**, i.e. the subject matter or chapter.
5. **Sthana**: **position / order** of the words.
6. **Samakhya**: **name / etymology**.

If these conflict, the **earlier prevails over the later** (*Purva-daurbalya*).

**Important axioms (nyayas)**

1. **Sarthakya axiom**: **every word and sentence must have a meaning**. No word is redundant. This is the same as the modern rule against surplusage.
2. **Laghava axiom**: when there is a choice, the interpretation that is **simpler / more economical** (needing fewer assumptions) is preferred.
3. **Arthaikatva axiom**: a word or sentence must have **one meaning in the same context**. Double meanings are avoided (similar to the rule that the same word has the same meaning throughout).
4. **Gunapradhan axiom**: if a **subordinate (guna)** provision **conflicts** with the **principal (pradhan)** provision, the **subordinate yields** to the principal, or is ignored. *Ispat Industries* (2006): the Customs Valuation Rules (subordinate) gave way to the Customs Act (principal).

5. **Samanjasya principle**: **harmonious construction**. Apparent conflicts must be **reconciled** (similar to harmonious construction).
6. **Vikalpa principle**: where there is a real conflict that cannot be reconciled, an **option** is allowed; it is used **as a last resort**.
7. **Atidesha principle**: **extension by analogy**, i.e. applying the features of one thing to another (similar to a legal fiction).
8. **Badha**: **cancellation**, where one rule is excluded in favour of another.

**Vidhi, Nishedha and Arthavada**: Mimansa classifies texts into **Vidhi** (positive command), **Nishedha** (prohibition), and **Arthavada** (explanatory or recommendatory text, which is **directory**, not mandatory). Courts have used this to distinguish **mandatory from directory provisions**.

**Conclusion**: Mimansa shows that India had a sophisticated, **rational interpretive tradition** long before the English rules. Its principles parallel and sometimes exceed the literal, purposive and harmonious rules.

## Q6. Literal rule (grammatical / plain meaning rule)

**Meaning**: the words of a statute must be given their **ordinary, natural and grammatical meaning**. If the words are **clear and unambiguous**, the court must give effect to them **whatever the consequences**, even if harsh or absurd, because the legislature is presumed to mean what it says.

- **Maxim**: *Absoluta sententia expositore non indiget* (when the language is clear, no explanation is needed).
- **Tindal C.J. in the Sussex Peerage Case** (1844): “If the words of the statute are in themselves precise and unambiguous, then no more can be necessary than to expound those words in their natural and ordinary sense.”

**Cases**

- **Whiteley v. Chappell** (1868): it was an offence to impersonate “any person **entitled to vote**”. The accused impersonated a **dead person**. A dead person is not “entitled to vote”, so the accused was **acquitted**. (This shows the absurd result of the literal rule.)
- *R v. Harris* (1836): “stab, cut or wound”. Biting off a nose was not covered.
- *Fisher v. Bell* (1961): a flick-knife displayed in a shop window was **not an “offer for sale”** (it was an invitation to treat), so the shopkeeper was not liable.
- **India**:
    - *State of U.P. v. Vijay Anand Maharaj* (1963);
    - **Nelson Motis v. Union of India** (1992): the clear words of a rule must be given effect;
    - *Kanai Lal Sur v. Paramnidhi Sadhukhan* (1957): if the words are clear, consequences are irrelevant;
    - *Gurudevdatta VKSSS Maryadit v. State of Maharashtra* (2001);
    - *Raghunath Rai Bareja v. Punjab National Bank* (2007): the literal rule is the **first rule**; a hard case is no ground to depart from it.

    - *Ramavtar Budhaiprasad v. Assistant Sales Tax Officer* (1961): "**vegetables**" in a sales tax Act did not include **betel leaves**. Words are to be given the meaning in **common parlance** (the popular sense).

**Merits**: certainty, respect for the separation of powers, and it limits judicial legislation. **Demerits**: absurd or unjust results; it ignores the purpose of the law; language is inherently imperfect.

## Q7. Golden rule

**Meaning**: a **modification of the literal rule**. Words are given their ordinary meaning, **unless** that leads to an **absurdity, inconsistency, hardship or repugnancy**, in which case the meaning may be **modified** to the extent necessary to avoid it, but **no further**.

- **Lord Wensleydale in Grey v. Pearson** (1857): "the grammatical and ordinary sense of the words is to be adhered to, unless that would lead to some absurdity, or some repugnance or inconsistency with the rest of the instrument, in which case the grammatical and ordinary sense may be modified so as to avoid that absurdity and inconsistency, but no further."
- **Lord Blackburn in River Wear Commissioners v. Adamson** (1877).

**Cases**

- **R v. Allen** (1872): bigamy, "whoever being married shall **marry** another". Taken literally, a **second valid marriage is impossible**, so no one could ever commit bigamy. "Marry" was read as "**go through a ceremony of marriage**".
- **Re Sigsworth** (1935): a son murdered his mother and claimed her estate on intestacy. The court applied the golden rule to **prevent the murderer inheriting**.
- **Adler v. George** (1964): "**in the vicinity of**" a prohibited place was read to include "**in**" the prohibited place.
- *Lee v. Knapp* (1967): "stop" after an accident.
- **India**:
    - **Tirath Singh v. Bachittar Singh** (1955): "**notice to persons**" was read narrowly to avoid the absurdity of giving notice to all persons; it meant persons not already parties.
    - *State of Punjab v. Qaisar Jehan Begum* (1963): "**date of the award**" in the Land Acquisition Act meant the date the award was **communicated** to the party, not the date it was signed.
    - *Lee Kun Hee v. State of U.P.* (2012).

**Merits**: it avoids absurdity while respecting the text. **Demerits**: what counts as "absurd" is **subjective**. Lord Reid described it as a rule "very difficult to apply".

## Q8. Mischief rule (Heydon's rule / purposive approach)

**Origin**: **Heydon's Case** (1584, Barons of the Exchequer). This is the **oldest** rule.

**Four questions** to be considered:

1. What was the **common law before** the Act was made?
2. What was the **mischief and defect** for which the common law did not provide?
3. What **remedy** has Parliament resolved to provide to cure the disease?
4. What is the **true reason** for the remedy?

Then the judges should **make such construction as shall suppress the mischief and advance the remedy**.

**Cases**

- **Smith v. Hughes** (1960): the Street Offences Act 1959 made it an offence for prostitutes to **solicit "in a street"**. They solicited from **balconies and windows**. They were held liable, because the mischief was the **harassment of people in the street**.
- *Corkery v. Carpenter* (1951): a bicycle was held to be a "**carriage**" under the Licensing Act.
- *Royal College of Nursing v. DHSS* (1981): nurses carrying out abortions were held covered.
- **India**:
    - **Bengal Immunity Co. v. State of Bihar** (1955): Art. 286 was interpreted using Heydon's rule to prevent multiple taxation of inter-state sales.
    - **Kanwar Singh v. Delhi Administration** (1965): "**owner**" of stray cattle included a person **in possession and control**, to suppress the mischief of stray cattle.
    - *Alamgir v. State of Bihar* (1959): "detains" in IPC s.498 was interpreted using the mischief rule.
    - *Sodra Devi v. Commissioner of Income Tax* (1957): "individual" in the Income Tax Act included **females** as well.
    - *Pyare Lal v. Ram Chandra* (2008).
    - *Badshah v. Urmila Badshah Godse* (2014): social justice adjudication.

**Modern version**: the **purposive approach**, i.e. reading the statute to further its purpose (*Pepper v. Hart*, 1993; *Workmen of American Express v. Management*, 1985).

**Merits**: gives effect to the intention and the purpose, and avoids injustice. **Demerits**: it gives judges wide power (a risk of judicial legislation), and it is hard to find the mischief from old records.

## Q9. Harmonious construction. *(Very important)*

**Meaning**: when there is a **conflict between two or more provisions** of the same statute, or between different statutes, the court must **interpret them so as to harmonise them** and **give effect to both**. One provision should not be read to make another **redundant or useless**. The statute must be **read as a whole**.

**Basis**: the legislature does not intend contradiction; *ut res magis valeat quam pereat*.

**Principles** (*CIT v. Hindustan Bulk Carriers*, 2003):

1. Courts must **avoid a head-on clash** between two sections and construe them harmoniously.
2. A provision of one section **cannot be used to defeat** another unless reconciliation is impossible.
3. If it is impossible to reconcile them, the courts must interpret them so that **effect is given to both as far as possible**.
4. Harmonious construction must **not render either provision a dead letter** or useless.
5. To harmonise is not to destroy any statutory provision or **render it otiose**.

**Cases**

- **Venkataramana Devaru v. State of Mysore** (1958): there was a conflict between **Art. 25(2)(b)** (throwing open Hindu temples to all classes) and **Art. 26(b)** (the right of a denomination to manage its affairs in matters of religion). The court harmonised them: the temple was open to all, but the denomination could **exclude the public from certain special ceremonies**.
- **Re Kerala Education Bill** (1957): a conflict between the **Directive Principles** and **Fundamental Rights** was resolved by harmonious construction. Courts should try to give effect to both.
- *Sri Shankari Prasad Singh Deo v. UOI* (1951): Art. 13 and Art. 368 were harmonised; at that time, an amendment was held not to be "law" under Art. 13.
- *M.S.M. Sharma v. Sri Krishna Sinha* (1959): Art. 19(1)(a) and Art. 194(3) (legislative privileges).
- *Calcutta Gujarati Education Society v. Calcutta Municipal Corporation* (2003).
- *Sirsilk Ltd. v. Government of A.P.* (1964).
- *Raj Krishna Bose v. Binod Kanungo* (1954).
- *Commissioner of Sales Tax, M.P. v. Radha Krishan* (1979).

## Q10. Rule of last antecedent

**Meaning**: **relative and qualifying words, phrases or clauses** ordinarily apply only to the **immediately preceding words or phrase (the last antecedent)**, and not to more remote ones, **unless the context or intention requires otherwise**.

- *Example*: in "a dog, a horse or a cat **that is black**", "that is black" applies only to the "cat".
- **Exception**: if a **comma** separates the qualifying phrase from the antecedents, it may apply to all of them. If the sense of the passage requires it, the qualifying words apply to all the antecedents.

**Cases**

- *Lockhart v. United States* (2016, US Supreme Court): applied the rule.
- *Barnes v. Jarvis* (1953).
- **India**: courts apply the rule as an **aid**, not a **rigid rule**. It yields to context and intention. *Mohan Lal v. State* (various); *Asiatic Steam Navigation Co. v. Arabinda Chakravarti* (1959): context governs. *Union of India v. Pradeep Kumar Dey* (2000).

## Q11. Non-obstante clause

**Meaning**: a clause beginning with "**Notwithstanding anything contained in** …" It gives the provision **overriding effect** over the provisions or Acts mentioned in it, in case of **conflict**.

**Principles**

1. It is used to **override** a conflicting provision. It does not apply if there is **no conflict**.
2. It must be **interpreted in the light of the enacting part**. It does **not control** the enacting part.
3. When **two statutes both contain non-obstante clauses**, the **later** one generally prevails, but the court looks to the object and purpose of each (*Solidaire India Ltd. v. Fairgrowth Financial Services*, 2001; *Sarwan Kumar v. Madan Lal Aggarwal*, 2003). A **special Act** prevails over a general Act.
4. The scope of the clause is **limited to its intended extent**.

**Cases**

- **Chandavarkar Sita Ratna Rao v. Ashalata S. Guram** (1986): a non-obstante clause is used to give the enacting part an overriding effect in case of conflict.
- **Aswini Kumar Ghosh v. Arabinda Bose** (1952): a non-obstante clause should be interpreted in light of the enacting part; it does not necessarily cut down the enacting part.
- *R.S. Raghunath v. State of Karnataka* (1992): the non-obstante clause must be read in its context.
- *Union of India v. G.M. Kokil* (1984).
- *Central Bank of India v. State of Kerala* (2009): the RDB Act and SARFAESI Act do not override the State's first charge.
- Examples: IBC s.238; Art. 31C; Art. 258A; BNSS s.4; Arbitration Act s.5.

## Q12. Legal fiction (deeming provisions)

**Meaning**: the legislature **assumes (deems) something to exist** that does not exist in reality, or treats one thing as another, for a specific purpose. Words used are "**deemed**", "**as if**", "**shall be treated as**".

**Principles**

1. A legal fiction must be **carried to its logical conclusion** within the purpose for which it was created. The court must **imagine as real all the consequences and incidents** that would inevitably flow from it.
2. **Lord Asquith in East End Dwellings Co. Ltd. v. Finsbury Borough Council** (1952): "If you are bidden to treat an imaginary state of affairs as real, you must surely, unless prohibited from doing so, also imagine as real the consequences and incidents which, if the putative state of affairs had in fact existed, must inevitably have flowed from or accompanied it … **The statute says that you must imagine a**

**certain state of affairs; it does not say that having done so, you must cause or permit your imagination to boggle** when it comes to the inevitable corollaries of that state of affairs."

3. However, a legal fiction is **limited to the purpose** for which it is created. It **should not be extended beyond** that purpose (*Bengal Immunity Co. v. State of Bihar*, 1955; *CIT v. Amarchand Shroff*, 1963).

**Cases**

- **State of Bombay v. Pandurang Vinayak Chaphalkar** (1953): adopted Lord Asquith's statement.
- *Bengal Immunity Co. v. State of Bihar* (1955): the explanation to Art. 286 created a fiction for a limited purpose only.
- *Hari Ram v. Babu Gokul Prasad*.
- *Sant Lal Gupta v. Modern Co-operative Group Housing Society* (2010).
- *Commissioner of Income Tax v. S. Teja Singh* (1959).
- Examples: a company as a legal person; an adopted child deemed to be a natural child; Hindu Succession Act s.6 (deemed partition).

## Q13. Conjunctive and disjunctive words: "and" and "or"

**General rule**:

- "**Or**" is **disjunctive**: it means **either / alternatives**.
- "**And**" is **conjunctive**: it means **all** the conditions must be satisfied.

**Exception**: where reading them literally leads to **absurdity, inconsistency or defeats the intention**, "or" may be read as "and", and "and" as "or" (the golden rule).

**Cases**

- *R v. Oakes* (1959): in the Official Secrets Act, "**and**" was read as "**or**" (aiding *or* abetting) to avoid absurdity.
- *Mazagaon Dock Ltd. v. CIT* (1958).
- **Ishwar Singh Bagga v. State of Rajasthan** (1987): in the Motor Vehicles Act, "or" was read as "and" in the context.
- *Joint Director of Mines Safety v. M/s Tandur and Nayandgi Stone Quarries* (1987): "and" was read as "or".
- *Sanjay Dutt v. State through CBI* (1994): "and" in the TADA Act.
- *Fakir Mohd. v. Sita Ram* (2002).
- *Municipal Corporation of Delhi v. Tek Chand Bhatia* (1980).

**Conclusion**: reading one as the other is done **only when necessary** to give effect to the legislative intention and avoid absurdity. It is an exception.

## Q14. Construction of general words. ***(Very important)***

**(a) Ejusdem generis** ("of the same kind")

- **Meaning**: when **general words follow specific words** of a distinct category (**genus**), the general words are **restricted to things of the same kind** as the specific words.
- *Example*: "**dogs, cats and other animals**" means other **domestic** animals only, not lions or tigers.
- **Conditions** (*Amar Chandra Chakraborty v. Collector of Excise, Tripura*, 1972):
    1. The statute contains an **enumeration of specific words**.
    2. The subjects of the enumeration constitute a **class or category** (genus).
    3. That class or category is **not exhausted** by the enumeration.
    4. **General terms follow** the enumeration.
    5. There is **no indication of a different legislative intent**.
- **Cases**:
    - **Powell v. Kempton Park Racecourse Co.** (1899): "house, office, room or **other place**" for betting. An **open-air enclosure** was **not** covered, since the specific words referred to **indoor places**.
    - *Evans v. Cross* (1938): "**traffic sign**" was read as "lines, signals, notices or **other devices**". White lines painted on the road were not covered.
    - *Lilavati Bai v. State of Bombay* (1957): the rule was **not applied**. The legislature intended a wider meaning (an explanation used "or otherwise").
    - **Kavalappara Kottarathil Kochuni v. State of Madras** (1960): the rule was applied.
    - **U.P. State Electricity Board v. Hari Shankar Jain** (1978): "any other law" was read ejusdem generis.
    - *Siddeshwari Cotton Mills v. Union of India* (1989): the doctrine's limits.
    - *Grasim Industries v. Collector of Customs* (2002).
    - *Maharashtra University of Health Sciences v. Satchikitsa Prasarak Mandal* (2010).
- **Limitations**: not applied if the specific words do not form a single genus, if the general words come first, or if the intention is clearly wider.

**(b) Noscitur a sociis** ("a word is known by the company it keeps")

- **Meaning**: the meaning of a doubtful word may be ascertained by reference to the **meaning of words associated with it**. When two or more words **susceptible of analogous meaning** are coupled together, they take their colour from each other. This is **broader** than ejusdem generis (ejusdem generis is an application of it).
- **Cases**:
    - *Foster v. Diphwys Casson* (1887): "**explosives**" taken into a mine "in a case or canister". A cloth bag was not a "case".
    - *Pengelly v. Bell Punch Co.* (1964): "floor" in "floors, steps, stairs, passages and gangways" meant floors used for **passage**, not storage.
    - *Inland Revenue v. Frere* (1965): "interest, annuities or other annual payments" meant "**annual** interest".
    - **State of Bombay v. Hospital Mazdoor Sabha** (1960): this applied the rule but **declined to restrict "industry"** to trade-like activities; a **hospital** was held to be an industry.

    - **Rainbow Steels Ltd. v. CST** (1981): "**old, discarded, unserviceable or obsolete** machinery". "Old" was read in the sense of no longer usable.
    - *Ahmedabad Private Primary Teachers' Association v. Administrative Officer* (2004): "skilled, unskilled, manual, clerical" in the definition of "employee". Teachers were held **not** "employees" under the Payment of Gratuity Act (this was later changed by amendment).
    - *Bangalore Water Supply v. A. Rajappa* (1978): the court did not limit "industry".
    - *Godfrey Phillips India v. State of U.P.* (2005): "**luxuries**" in Entry 62 List II was read with "entertainment, amusement, betting and gambling", so it did not cover tobacco.

**(c) Reddendo singula singulis** ("referring each to each")

- **Meaning**: when a sentence contains several **antecedents and several consequents**, they are to be **read distributively**: each word applies to its appropriate subject.
- *Classic example*: "If anyone shall **draw or load** any **sword or gun**". This is read as "**draw a sword** or **load a gun**", since one does not "load a sword".
- *Another example*: "**Executors and administrators** shall be **appointed and granted**". Executors are appointed; administration is granted.
- *Koteswar Vittal Kamath v. K. Rangappa Baliga & Co.* (1969).
- *Commissioner of Income Tax v. Shahzada Nand & Sons* (1966).

**(d) Words of rank**

- When general words follow **words of a particular rank** (e.g. "**archbishops, bishops, deans** … **and other clergy**"), the general words are confined to persons **of a rank lower than** the specific ones and **do not include higher ranks**.
- *Example*: in the Statute of Westminster, "**deans, archdeacons, parsons and others having spiritual promotion**" did not include **bishops**, who are of a higher rank.
- *Example*: "**Earls, Barons and other nobles**" did not include **Dukes** (who are of a higher rank).
- This is an application of ejusdem generis, plus the principle that **general words do not include persons of higher rank** than the specific ones.

**Other related maxims**

- **Expressio unius est exclusio alterius**: the express mention of one thing excludes others. *Union of India v. B.C. Nawn* (1972); *Pokhar Singh v. State of U.P.*.
- **Generalia specialibus non derogant**: a general provision does not derogate from a special one.

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# MODULE 3 — INTERNAL AND EXTERNAL AIDS TO INTERPRETATION

## Q15. Internal aids to interpretation. *(Very important)*

**Internal aids** are found **within the statute itself**.

1. **Long title**: describes the **purpose and scope** of the Act. It is a legitimate aid where there is ambiguity (*Manohar Lal v. State of Punjab*, 1961; *Aswini Kumar Ghosh v. Arabinda Bose*, 1952). The **short title** is only for identification.

2. **Preamble**: the **introduction** to the Act. It states the **object, purpose and reasons** for enacting it. It is the "**key to open the mind of the legislature**" (*Dyer C.J. in Stowel v. Lord Zouch*, 1569).

    - **Use**: it can be referred to **only when the enacting part is ambiguous**. It cannot **control or restrict** clear words (*A.G. v. Prince Ernest Augustus of Hanover*, 1957).
    - *Re Berubari Union* (1960): the Preamble is **not part of the Constitution**.
    - **Kesavananda Bharati v. State of Kerala** (1973): **overruled Berubari**. The Preamble **is part of the Constitution** and can be used to interpret it; it is part of the basic structure.
    - *LIC v. Consumer Education & Research Centre* (1995).
    - *Burrakur Coal Co. v. UOI* (1961): the preamble cannot override clear words.
    - *A. Thangal Kunju Musaliar v. M. Venkatachalam Potti* (1956): used to resolve ambiguity.

3. **Definitions / interpretation clause**

    - "**means**" is **exhaustive / restrictive**: only what is listed.
    - "**includes**" is **extensive**: it adds to the ordinary meaning.
    - "**means and includes**" is **exhaustive**.
    - Definitions apply "**unless the context otherwise requires**".
    - *Mahalakshmi Oil Mills v. State of A.P.* (1989); *Regional Director, ESIC v. High Land Coffee Works* (1991); *P. Kasilingam v. P.S.G. College of Technology* (1995): "means and includes" is exhaustive. *Bangalore Water Supply v. A. Rajappa* (1978): the definition of "industry".

4. **Headings**: prefixed to a section or group of sections. They are **like a preamble** to those sections. They can be referred to **to resolve doubt**, but **cannot control the plain meaning** of the section.

    - **Bhinka v. Charan Singh** (1959): headings may be relied on to clear up any doubt or ambiguity.
    - *Frick India Ltd. v. Union of India* (1990): headings cannot control the plain words.
    - *Raichurmatham Prabhakar v. Rawatmal Dugar* (2004): headings may be used to resolve doubt.
    - *Durgaprasad More v. Arun* (various).

5. **Marginal notes**: printed at the side of sections. Their value is **limited**, since they are not enacted by the legislature (they are inserted by the draftsman). They may be

used where there is ambiguity, especially in the **Constitution**, where they were enacted by the Constituent Assembly. *Bengal Immunity Co. v. State of Bihar* (1955); *Sakshi v. UOI* (2004); *Western India Theatres v. Cantonment Board* (1959).

6. **Illustrations**: given under sections (e.g. in the IPC and IEA). They **help explain** the section and show its application. **They cannot curtail or expand** its scope, and **cannot control the text**. If an illustration is **repugnant** to the section, the **section prevails**.

    - **Shambhu Nath Mehra v. State of Ajmer** (1956): illustrations cannot curtail the section.
    - *Mahesh Chandra Sharma v. Raj Kumari Sharma* (1996).
    - *Mohammad Syedol Ariffin v. Yeoh Ooi Gark* (1916, Privy Council): illustrations are of relevance and value.

7. **Proviso**: begins with "**Provided that** …". Its function is to **except or qualify** something from the main enactment. Normally, it **does not enlarge** the main provision.

    - **S. Sundaram Pillai v. V.R. Pattabiraman** (1985) gave **four purposes of a proviso**:
        1. to **qualify or except** certain provisions from the main enactment;
        2. it may entirely change the very concept of the main enactment by making certain mandatory conditions necessary;
        3. it may be so embedded in the Act as to become an **integral part** of it and acquire the tenor and colour of the substantive enactment;
        4. it may be used merely to **act as an optional addendum** to the enactment, with the sole object of explaining its real intendment.
    - *Shah Bhojraj Kuverji Oil Mills v. Subhash Chandra Yograj Sinha* (1961): the proviso is to be construed in relation to the main provision.
    - *Kedarnath Jute Mfg. Co. v. CTO* (1965).
    - *Dwarka Prasad v. Dwarka Das Saraf* (1976): a proviso may sometimes be substantive.
    - *CIT v. Indo Mercantile Bank* (1959): a proviso cannot be used to interpret the main section.

8. **Explanation**: added to **explain the meaning** of the main section, clarify ambiguity, or remove doubts. It **does not enlarge** the scope of the section, though some explanations are "**for the removal of doubts**" and can widen it.

    - **S. Sundaram Pillai** (1985) gave the **objects of an explanation**:
        - to explain the meaning and intendment of the Act;
        - where there is obscurity or vagueness, to clarify it consistently with the object;
        - to provide an additional support to the dominant object;
        - to fill a gap;
        - it cannot take away a statutory right.

- *Bihta Co-operative Development Cane Marketing Union v. Bank of Bihar* (1967).
- *Hiralal Rattanlal v. State of U.P.* (1973).

9. **Schedule**: the **appendix** at the end of an Act. It gives details, forms, lists and rules. It is **part of the statute** and is to be read with it. If there is a **conflict** between the Schedule and the main enactment, the **enactment prevails**.

    - *Aphali Pharmaceuticals Ltd. v. State of Maharashtra* (1989): the Schedule is as much part of the statute as the main Act, and may be used to construe it, but in case of conflict the main enactment prevails.
    - *Ramchandra v. Laxmanrao*; the Constitution's Schedules (e.g. the Seventh Schedule lists).

10. **Punctuation**: given **little weight** in older statutes (it was not enacted). In modern statutes, it can be considered if **carefully** placed.

    - *Aswini Kumar Ghosh v. Arabinda Bose* (1952): little weight.
    - *Mohd. Shabbir v. State of Maharashtra* (1979): a comma made a difference ("manufactures for sale, sells, offers for sale").
    - *Jamshed N. Guzdar v. State of Maharashtra* (2005).

11. **Saving clauses, transitional provisions, and the sections themselves (read as a whole)**: *Ex visceribus actus* means **construe from within the Act**, reading the statute as a whole.

## Q16. External aids to interpretation. *(Very important)*

**External aids** are found **outside the statute**.

1. **Parliamentary history: debates and proceedings in the legislature**
    - This covers the speeches of movers, the **Statement of Objects and Reasons**, committee reports and amendments considered.
    - **English position**: originally, under the **exclusionary rule**, debates were **not admissible** (*Millar v. Taylor*, 1769; *Davis v. Johnson*, 1979). It was relaxed in **Pepper v. Hart** (1993, House of Lords): reference to **Hansard** (parliamentary debates) is allowed where (a) the legislation is ambiguous or obscure, or leads to absurdity; (b) the material relied on consists of statements by a **Minister or other promoter** of the Bill; and (c) the statements are **clear**.
    - **Indian position**:
        - Early cases did not admit debates: *Aswini Kumar Ghosh* (1952); *State of Travancore-Cochin v. Bombay Co.* (1952).
        - **Statement of Objects and Reasons** can be used **to understand the background, the antecedent state of affairs and the mischief**, but **not to construe** the words (*State of W.B. v. Subodh Gopal Bose*, 1954; *Central Bank of India v. Workmen*, 1960).
        - **K.P. Varghese v. ITO** (1981): the **Finance Minister's speech** introducing the Bill was used to interpret s.52(2) of the Income Tax Act.

This was a **liberal approach**.
        - **R.S. Nayak v. A.R. Antulay** (1984): **reports of committees** and the **Law Commission** can be referred to, to find the **mischief**, and parliamentary history may be referred to where the words are ambiguous.
        - *Kesavananda Bharati* (1973): Constituent Assembly debates were referred to.
        - *Indra Sawhney v. UOI* (1992): Dr Ambedkar's speech was used for "backward class".
        - *Union of India v. Steel Stock Holders Syndicate* (1976).
    - **Present position**: parliamentary history is **admissible as an aid** to find the context, the mischief and the purpose. It is **not conclusive**, and is used **with caution**.
2. **Socio-economic, technological developments (dynamic / updating construction)**
    - A statute is **always speaking**. It must be interpreted in light of **present conditions** and new technology (e.g. the internet, electronic evidence).
    - **State of Punjab v. Amritsar Beverages Ltd.** (2006): "**books of account**" includes **computer hard discs** (the court applied updating construction).
    - *S.P. Gupta v. UOI* (1981): socio-economic developments.
    - *National Textile Workers' Union v. P.R. Ramakrishnan* (1983): law cannot stand still.
    - *Senior Electric Inspector v. Laxminarayan Chopra* (1962): "telegraph line" included wireless.
    - *Royal College of Nursing v. DHSS* (1981).
    - **Social context adjudication**: *Badshah v. Urmila Badshah Godse* (2014).
3. **Reference to other statutes**
    - **Statutes in pari materia** (on the same subject): to be read **together** as forming one system. *State of Madras v. Vaidyanatha Iyer* (1958): "shall presume" in the Prevention of Corruption Act was read with the Evidence Act. *Ahmedabad Private Primary Teachers' Association* (2004).
    - **Earlier statutes / repealed Acts** may be used to show the mischief and context.
    - **Later statutes**: a later Act may be used as a **parliamentary exposition** of an earlier one if the earlier is ambiguous.
    - **Statutes not in pari materia**: definitions from other Acts should be used cautiously (*MSCO Pvt. Ltd. v. UOI*, 1985).
    - **The General Clauses Act** is always available.
4. **International conventions**
    - Where domestic law is **ambiguous or silent**, courts may refer to **international conventions** that India has ratified (or that are consistent with fundamental rights) to fill gaps, provided they are **not inconsistent** with domestic law. Art. 51(c) and Art. 253 support this.
    - **Vishaka v. State of Rajasthan** (1997): **CEDAW** was used to frame sexual harassment guidelines.
    - **Jolly George Varghese v. Bank of Cochin** (1980): ICCPR Art. 11. The court gave effect to the domestic law (CPC) but used the ICCPR to interpret it.

- *Apparel Export Promotion Council v. A.K. Chopra* (1999).
- *Githa Hariharan v. RBI* (1999).
- *NALSA v. UOI* (2014): Yogyakarta Principles were used to recognise transgender persons.
- *People's Union for Civil Liberties v. UOI* (1997): telephone tapping.
- *Gramophone Co. of India v. Birendra Bahadur Pandey* (1984): international law is to be respected where not in conflict.

5. **Committee reports and Law Commission reports**
   - These are used to understand the **mischief and the purpose**. *R.S. Nayak v. A.R. Antulay* (1984); *Rosy v. State of Kerala* (2000): the Law Commission report on the CrPC was used. *Mithilesh Kumari v. Prem Behari Khare* (1989): the Benami Act and the Law Commission report. *Santa Singh v. State of Punjab* (1976): the 41st Law Commission Report.
6. **Other external aids**
   - **Dictionaries**: used to find the ordinary meaning when a word is not defined. They are **not conclusive**; the context prevails (*Kanwar Singh v. Delhi Administration*, 1965; *State of Orissa v. Titaghur Paper Mills*, 1985).
   - **Text books, foreign decisions, judicial precedents, usage and practice** (*contemporanea expositio est optima et fortissima in lege*: contemporaneous exposition is the best and strongest in law). Also **historical background** and **government notifications**.

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# MODULE 4 — APPROACHES, RESTRAINTS AND PRESUMPTIONS IN INTERPRETATION

## Q17. Theoretical and ideological approaches; judicial restraint, judicial activism, juristic restraint and juristic activism

### Theoretical approaches to interpretation

1. **Literal / textual approach**: the text is supreme.
2. **Purposive / teleological approach**: the purpose and object guide meaning.
3. **Intentionalist approach**: the intention of the legislature at the time of enactment.
4. **Dynamic / evolutive approach**: the law adapts to changing times.
5. **Sociological approach** (Roscoe Pound): law as a tool of **social engineering**; interpretation to promote social welfare.
6. **Realist approach**: what judges actually do.
7. **Natural law approach**: interpretation consistent with justice and morality.

**Ideological approaches**: interpretation shaped by the judge's **values** (liberal, conservative, socialist, rights-based, and so on).

### Judicial activism

- **Meaning**: the judiciary takes an **active role** in protecting rights and filling legislative and executive gaps, **going beyond the literal** meaning to secure **social**

**justice**.
- **Examples in India**:
  - *Golak Nath v. State of Punjab* (1967);
  - **Kesavananda Bharati** (1973): basic structure;
  - **Maneka Gandhi** (1978): expanded Art. 21;
  - **PIL**: *S.P. Gupta* (1981), *Hussainara Khatoon* (1979), *M.C. Mehta v. UOI* (environment);
  - **Vishaka** (1997): guidelines in the absence of a law;
  - *Olga Tellis* (1985): right to livelihood;
  - *K.S. Puttaswamy v. UOI* (2017): privacy;
  - *Navtej Singh Johar v. UOI* (2018);
  - *Shayara Bano v. UOI* (2017).
- **Merits**: protects rights, fills gaps, ensures accountability.
- **Criticism**: "**judicial overreach**" or "**judicial legislation**"; it violates the separation of powers; it is undemocratic because judges are unelected.

**Judicial restraint**

- **Meaning**: judges **defer to the legislature and executive**. They **do not substitute their own views**, they decide only what is necessary, and they **presume constitutionality**.
- **Cases**:
  - *A.K. Gopalan v. State of Madras* (1950);
  - **Divisional Manager, Aravali Golf Club v. Chander Hass** (2008): Justice Markandey Katju cautioned **against judicial activism** and called for judges to know their limits and not try to run the Government;
  - *State of Rajasthan v. Union of India* (1977);
  - *Almitra H. Patel v. UOI* (2000);
  - *Common Cause v. UOI* (2008).

**Juristic activism and juristic restraint**: these relate to **jurists, scholars and the academic community**.

- **Juristic activism**: scholars advocate **creative, reformist interpretation** and new theories (e.g. Upendra Baxi on PIL, and Ronald Dworkin's "law as integrity", which treats the judge as Hercules).
- **Juristic restraint**: scholars advocate **strict, positivist interpretation** (e.g. H.L.A. Hart's positivism and Austin's command theory), under which judges declare the law and do not make it.

**Conclusion**: a balance is needed. Activism should be exercised in **exceptional circumstances** and restraint in normal cases. The judiciary must respect the **separation of powers** while protecting **fundamental rights**.

## Q18. Presumptions in interpretation

Presumptions are **assumptions** that courts make about legislative intention **unless the statute clearly indicates otherwise**.

**1. Presumption against ousting the established jurisdiction of courts**

- The jurisdiction of **civil courts** is not lightly presumed to be **excluded**. Exclusion must be **express or clearly implied** (CPC s.9).
- **Dhulabhai v. State of M.P.** (1969): **seven principles** on the exclusion of civil court jurisdiction:
    1. Where the statute gives **finality** to the orders of special tribunals, civil court jurisdiction is excluded **if there is an adequate remedy** to do what civil courts would normally do. This does not exclude cases where the provisions of the Act have not been complied with or the tribunal has not acted in conformity with fundamental principles of judicial procedure.
    2. Where there is an **express bar**, the scheme of the Act must be examined to see the adequacy of remedies.
    3. A challenge to the provisions of the Act as **ultra vires** can be brought in a civil suit.
    4. When a provision is declared **unconstitutional**, a suit for refund lies.
    5. Where the particular Act contains no machinery for refund, a suit lies.
    6. Questions about the correctness of an assessment, apart from its constitutionality, are for the authorities.
    7. An exclusion of jurisdiction is **not to be readily inferred**.
- *Secretary of State v. Mask & Co.* (1940, Privy Council).
- *Raja Ram Kumar Bhargava v. UOI* (1988).
- *Premier Automobiles v. Kamlekar Shantaram Wadke* (1976).
- **Ouster clauses** such as “shall be final” or “shall not be called in question in any court” **do not exclude** writ jurisdiction under **Arts. 32 and 226** (*L. Chandra Kumar v. UOI*, 1997: judicial review is part of the basic structure).

**2. Presumption against creating new jurisdiction or enlarging established jurisdiction**

- The legislature is presumed **not to create new jurisdiction** or **enlarge the jurisdiction of existing courts or tribunals** unless it uses clear words. A statute conferring jurisdiction is **strictly construed**.
- *A.R. Antulay v. R.S. Nayak* (1988): the Supreme Court could not create jurisdiction by transferring a case to the High Court contrary to statute. “No court can confer jurisdiction where none exists.”
- *Kiran Singh v. Chaman Paswan* (1954): a decree passed without jurisdiction is a nullity.

**3. Presumption about territorial extent of jurisdiction**

- The legislature is presumed to legislate for its **own territory**, not beyond. Statutes are presumed **not to have extra-territorial operation**, unless expressly provided.
- **Parliament** may make laws having **extra-territorial operation** (**Art. 245(2)**: no law shall be invalid on the ground of extra-territorial operation).
- **State legislatures** can make laws for the **State only**, but a law is valid if there is a **sufficient territorial nexus** (**State of Bombay v. R.M.D. Chamarbaugwalla**,

1957: a prize competition published in a Bangalore newspaper and circulated in Bombay; a sufficient nexus existed; *Tata Iron & Steel Co. v. State of Bihar*, 1958).
- *GVK Industries v. ITO* (2011): Parliament may legislate for extra-territorial aspects that have a **nexus with India**.
- *A.H. Wadia v. CIT* (1949).

**4. Presumption against violation of international law**

- A statute is presumed to be **consistent with international law** and with India's **treaty obligations**. Where two interpretations are possible, the one consistent with international law is preferred. If the statute is **clear** and conflicts with international law, the **statute prevails** (municipal courts are bound by municipal law).
- **Gramophone Co. of India Ltd. v. Birendra Bahadur Pandey** (1984): the "**doctrine of incorporation**". Rules of international law are incorporated into national law unless they conflict with an Act of Parliament.
- *Jolly George Varghese v. Bank of Cochin* (1980).
- *Vishaka* (1997).
- *People's Union for Civil Liberties v. UOI* (1997).
- *Art. 51(c)*: foster respect for international law and treaty obligations.

**Other presumptions (for completeness)**

- Against retrospective operation.
- **Against injustice or absurdity**.
- Against taking away vested rights.
- **Mens rea** is required in criminal statutes.
- The **State is not bound** by a statute unless named or by necessary implication (*Director of Rationing v. Corporation of Calcutta*, 1960; later modified in *Superintendent and Legal Remembrancer v. Corporation of Calcutta*, 1967).
- **Presumption of constitutionality**.
- The legislature does not commit mistakes, and does not use words without meaning.

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# MODULE 5 — MODES OF INTERPRETATION OF THE CONSTITUTION

## Q19. Constitutional interpretation as different from statutory interpretation

| Constitutional interpretation | Statutory interpretation |
|---|---|
| The Constitution is the **supreme law**, the **grundnorm** | Statutes are **subordinate** to the Constitution |
| It is a **living, organic document** meant to endure for ages; it needs **broad, liberal and dynamic** interpretation | Generally **strict / literal**, depending on the type of statute |
| Interpreting it involves **political, social and moral** values | Mostly technical and legal |
| It is hard to amend | It is easy to amend |
| Basic structure limits apply | No such limits |
| **Purposive, harmonious**, rights-based | All rules of construction apply |

- *Chief Justice Marshall in McCulloch v. Maryland* (1819): "We must never forget that it is **a constitution** we are expounding." It is "intended to endure for ages to come".
- *Kesavananda Bharati* (1973).
- **Maneka Gandhi** (1978).
- *M. Nagaraj v. UOI* (2006): the Constitution is a **living document**.
- *Ashok Kumar Gupta v. State of U.P.* (1997).

## Q20. Approaches to constitutional interpretation

1. **Textualist interpretation**: the **text is supreme**. The meaning is found from the words. *A.K. Gopalan* (1950): Art. 21 was interpreted narrowly ("procedure established by law" meant any procedure enacted by law). This was later rejected in Maneka Gandhi.

2. **Originalist interpretation**: the meaning the provision had **at the time of framing**, i.e. the intention of the founders. It is used in the US by Justice Scalia. In India it has been used **sparingly**.

3. **Harmonious construction**: different provisions are reconciled, e.g. FRs and DPSPs (*Minerva Mills v. UOI*, 1980; *Re Kerala Education Bill*, 1957).

4. **Historical interpretation**: the **historical context**, i.e. the freedom struggle, the Government of India Act 1935, and the Constituent Assembly. *Indra Sawhney* (1992); *Kesavananda*.

5. **Reference to Constituent Assembly Debates (CAD)**

    - **Earlier view**: *A.K. Gopalan* (1950). Debates may not be used to interpret the Constitution, though they may be referred to for the history.
    - **Later view**: CAD are **admissible** to understand the **intention of the framers** and the context. Examples: *Kesavananda Bharati* (1973); *Indra Sawhney* (1992); **Supreme Court Advocates-on-Record Association v. UOI** (1993, Second Judges case); *S.R. Bommai v. UOI* (1994); *Manoj Narula v. UOI* (2014).
    - They are **not conclusive**. They are an aid.

6. **Structuralist interpretation**: interpretation based on the **structure and relationships** created by the Constitution: federalism, separation of powers, democracy. The **basic structure doctrine** is an example (*Kesavananda*).

7. **Pith and substance**: when a law of one legislature **incidentally encroaches** on a field assigned to another (Seventh Schedule), the court looks at the **true nature and character** of the law (its pith and substance). If it falls within the legislature's competence, it is valid, notwithstanding **incidental encroachment**.

    - **Prafulla Kumar Mukherjee v. Bank of Commerce, Khulna** (1947, Privy Council): a State moneylenders Act incidentally affected promissory notes (a Union subject). It was held valid.
    - **State of Bombay v. F.N. Balsara** (1951): the Bombay Prohibition Act incidentally affected imports. It was valid.
    - *Ishwari Khetan Sugar Mills v. State of U.P.* (1980).
    - **Colourable legislation** is related: what cannot be done directly cannot be done indirectly. *K.C. Gajapati Narayan Deo v. State of Orissa* (1953).

8. **Occupied field (Art. 254: repugnancy)**: in the **Concurrent List**, if a State law is **repugnant** to a Union law, the **Union law prevails** to the extent of repugnancy. A State law that received **Presidential assent** prevails in that State (Art. 254(2)).

    - **Tests for repugnancy** (*M. Karunanidhi v. UOI*, 1979; *Deep Chand v. State of U.P.*, 1959):
        - a. a direct conflict;
        - b. Parliament intended to make an **exhaustive code** (occupying the field);
        - c. both laws occupy the same field.
    - *Zaverbhai Amaidas v. State of Bombay* (1954).

9. **Residuary power**: **Art. 248** and **Entry 97 of List I**. The residuary power of legislation is with **Parliament**. *Union of India v. H.S. Dhillon* (1972): wealth tax on agricultural land was upheld under the residuary power. *Second GTO v. D.H. Nazareth* (1970). *Kartar Singh v. State of Punjab* (1994): TADA was upheld partly under the residuary power.

10. **Amending power (Art. 368)**: interpreting the scope of the power to amend.

    - *Shankari Prasad* (1951) and *Sajjan Singh* (1965) held there were **no limits**.
    - **Golak Nath** (1967): **Fundamental Rights cannot be amended**.
    - **Kesavananda Bharati** (1973): Parliament can amend any part, but **cannot alter the basic structure**.
    - *Indira Nehru Gandhi v. Raj Narain* (1975).
    - **Minerva Mills** (1980): limited amending power is itself part of the basic structure.
    - *I.R. Coelho v. State of T.N.* (2007): Ninth Schedule laws are subject to basic structure review.

- *Supreme Court Advocates-on-Record Assn. v. UOI* (2015): the NJAC was struck down.

11. **Moral reasoning and "national ethos"**: interpretation based on **constitutional morality** and the values of the Constitution (dignity, equality, liberty, fraternity).

    - *Naz Foundation v. Govt. of NCT Delhi* (Delhi HC, 2009): constitutional morality.
    - **Navtej Singh Johar** (2018): constitutional morality prevails over **social morality**.
    - *Indian Young Lawyers Association v. State of Kerala* (Sabarimala, 2018).
    - *Joseph Shine v. UOI* (2018).
    - *Manoj Narula v. UOI* (2014).
    - *Government of NCT Delhi v. UOI* (2018).

12. **Directive Principles as a source of constitutional interpretation**

    - DPSPs (Part IV) are **not enforceable** (Art. 37) but are **fundamental in the governance** of the country. They are used **to interpret Fundamental Rights** and to judge the **reasonableness** of restrictions.
    - Earlier, in *State of Madras v. Champakam Dorairajan* (1951), DPSPs were subordinate to FRs.
    - Later cases moved towards **harmonious** reading:
        - *Re Kerala Education Bill* (1957);
        - **Minerva Mills** (1980): balance between FRs and DPSPs is part of the basic structure;
        - **Unni Krishnan v. State of A.P.** (1993): the right to education was read into Art. 21 with Art. 45;
        - *Olga Tellis* (1985): livelihood (Art. 39(a));
        - *Bandhua Mukti Morcha v. UOI* (1984);
        - *State of T.N. v. L. Abu Kavur Bai* (1984);
        - *State of Gujarat v. Mirzapur Moti Kureshi Kassab Jamat* (2005): Art. 48 was used to uphold a cow slaughter ban.

13. **Stare decisis**: courts follow **precedents** for **certainty and consistency**.

    - **Art. 141**: the law declared by the **Supreme Court is binding on all courts** in India.
    - The Supreme Court is **not bound by its own decisions** (*Bengal Immunity Co. v. State of Bihar*, 1955). It can overrule them, but only for compelling reasons.
    - A larger bench binds smaller benches. A coordinate bench must refer a matter it disagrees with to a larger bench (*Central Board of Dawoodi Bohra Community v. State of Maharashtra*, 2005).
    - The **ratio decidendi** binds; **obiter dicta** are persuasive.
    - Exceptions: decisions *per incuriam* and *sub silentio*.

## Q21. Pragmatist interpretation; techniques of innovation (subversion) of stare decisis; the Supreme Court's power to overrule; retrospective

## overruling in India

**Pragmatist interpretation**: interpretation guided by the **practical consequences** of the decision, i.e. what works best for society. The judge considers policy, consequences and social needs, not just text and precedent. It is associated with **Holmes and Posner**. In India, decisions on PIL and environmental law (e.g. *M.C. Mehta*) reflect pragmatism.

**Techniques of innovation (subversion) of stare decisis**: the ways judges **avoid** being bound by precedent:

1. **Distinguishing**: the facts of the present case are materially different.
2. **Overruling**: a higher or larger bench declares the earlier decision wrong.
3. **Per incuriam**: the earlier decision was given in ignorance of a statute or a binding precedent (*Mamleshwar Prasad v. Kanhaiya Lal*, 1975; *State of U.P. v. Synthetics & Chemicals*, 1991).
4. **Sub silentio**: the point was not argued or considered.
5. **Narrowing / reading down** the ratio.
6. **Treating a statement as obiter dicta** rather than ratio.
7. **Changed circumstances**: social or legal change.
8. **Reference to a larger bench**.
9. **Prospective overruling**.

### Supreme Court's authority to overrule

- The Supreme Court is **not bound by its own previous decisions** (Art. 141 refers to "all courts within the territory of India", which does not include the SC itself). *Bengal Immunity* (1955).
- It may overrule a previous decision if it is **manifestly wrong**, if circumstances have changed, or if it is contrary to the public good. It is done by a **larger bench**.
- Examples:
    - *Golak Nath* was overruled by *Kesavananda*;
    - *A.K. Gopalan* was overruled in effect by *Maneka Gandhi* (and *R.C. Cooper*);
    - *ADM Jabalpur v. Shivkant Shukla* (1976) was overruled by *K.S. Puttaswamy* (2017);
    - *Suresh Kumar Koushal v. Naz Foundation* (2013) was overruled by *Navtej Singh Johar* (2018).

### Prospective overruling

- **Meaning**: the overruling decision **operates only for the future**. Past transactions decided on the old law are **not reopened**.
- **Origin**: American (Cardozo J. and *Great Northern Railway v. Sunburst Oil*, 1932; *Linkletter v. Walker*, 1965).
- **India**: **I.C. Golak Nath v. State of Punjab** (1967, Subba Rao C.J.) **first applied** prospective overruling. Parliament has **no power to amend FRs** in the future, but the earlier amendments (the 1st, 4th and 17th) remained valid.
- **Limits laid down in Golak Nath**:
    - it can be invoked **only in matters arising under the Constitution**;

    - it can be applied **only by the Supreme Court**;
    - its scope of retroactive operation is in the court's discretion.
- **Later cases**:
    - *India Cement Ltd. v. State of T.N.* (1990);
    - *Ashok Kumar Gupta v. State of U.P.* (1997): the doctrine can also be applied to statutes;
    - *Somaiya Organics (India) Ltd. v. State of U.P.* (2001);
    - *Baburam v. C.C. Jacob* (1999): prospective declaration of law;
    - *Union of India v. Mohd. Ramzan Khan* (1991): applied prospectively.

**Retrospective overruling**

- **Meaning**: under the **traditional (Blackstonian) declaratory theory**, judges **do not make law**; they only **declare** it. So when a precedent is overruled, the new law is deemed **always to have been the law**. The overruling operates **retrospectively** (ab initio), except for cases that have become **final** (*res judicata*).
- In India, overruling is **ordinarily retrospective**, unless the court expressly makes it **prospective** (*M.A. Murthy v. State of Karnataka*, 2003: retrospective is the norm and prospective is the exception, to be expressly stated; *P.V. George v. State of Kerala*, 2007).

## Q22. Advisory jurisdiction and its import on precedent

**Art. 143**: the **President may refer** to the Supreme Court any **question of law or fact** of **public importance** that has arisen or is likely to arise. The Court **may** report its opinion (Art. 143(1)). For disputes arising from pre-constitutional treaties, the Court **shall** report (Art. 143(2)). The opinion is given by at least **5 judges** (Art. 145(3)).

**Is the advisory opinion binding?**

- The Court may **decline** to answer if the question is not suitable (*Dr. M. Ismail Faruqui v. UOI*, 1994: the Ayodhya reference was declined; *Special Reference No. 1 of 1993*).
- **Re Special Courts Bill** (1978): the opinion is **not binding** on the President, but it is **entitled to great weight**. **Lower courts are bound** by it under Art. 141 as the "law declared".
- **Re Cauvery Water Disputes Tribunal** (1991): an advisory opinion "**deserves due weight and respect**", and it is **binding on all courts** in the same way as the law declared by the Supreme Court.
- **Special Reference No. 1 of 1998 (Re Presidential Reference)**: the Third Judges case on judges' appointments; it was **treated as binding** in practice.
- *Keshav Singh*, i.e. *Special Reference No. 1 of 1964* (legislative privileges).
- *Re Berubari Union* (1960).
- *Re Kerala Education Bill* (1957).
- *Special Reference No. 1 of 2002* (Gujarat elections).
- *Special Reference No. 1 of 2012* (2G and natural resources allocation).
- **Conclusion**: technically the opinion is **advisory**, but it is treated as **binding precedent** under Art. 141 by all courts and is invariably followed by the

Government.

### Q23. Objections to judicial review as anti-majoritarian (counter-majoritarian difficulty)

**Meaning**: **Alexander Bickel** (*The Least Dangerous Branch*, 1962) coined the phrase "**counter-majoritarian difficulty**". When **unelected judges** strike down laws passed by the **elected representatives of the majority**, they **thwart the will of the people**. This is said to be **undemocratic**.

**Objections**

1. Judges are **unelected and unaccountable** to the people.
2. It violates the **separation of powers**.
3. Judges substitute their **personal values** for those of the legislature.
4. It leads to **judicial supremacy**.
5. It can lead to **judicial overreach** (e.g. the NJAC judgment, 2015, was criticised for striking down a constitutional amendment passed almost unanimously).

**Responses (justification of judicial review)**

1. **The Constitution itself** is the will of the people, a **higher law**. Judicial review **enforces the people's will** in the Constitution against temporary majorities (Hamilton, **Federalist No. 78**; *Marbury v. Madison*, 1803).
2. **Protection of minorities and fundamental rights** against the "**tyranny of the majority**".
3. **Representation-reinforcement** (John Hart Ely, *Democracy and Distrust*): courts protect the democratic process itself.
4. In India, judicial review is **expressly provided** for in Arts. 13, 32, 226, 131–136 and is part of the **basic structure**:
    - *Kesavananda Bharati* (1973);
    - *Indira Nehru Gandhi v. Raj Narain* (1975);
    - *Minerva Mills* (1980);
    - **L. Chandra Kumar v. UOI** (1997).
5. **Dworkin**: the "**forum of principle**" where rights are decided on principle, not on policy.
6. Courts exercise **self-restraint** and use a **presumption of constitutionality**.

**Conclusion**: judicial review is not anti-democratic. It is part of **constitutional democracy**, provided judges act with **restraint and principled reasoning**.

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## MODULE 6 — CONSTRUCTION OF PENAL, TAXING AND REMEDIAL STATUTES

### Q24. Rule of strict construction of taxing statutes. *(Important)*

**Rule**: a **taxing statute must be strictly construed**. There is no room for **intendment**, equity or presumption. Tax can be imposed **only by clear words**. If the words are **ambiguous**, the benefit goes to the **taxpayer (the subject)**. **Art. 265**: no tax shall be levied or collected except by the **authority of law**.

**Classic statement: Rowlatt J. in Cape Brandy Syndicate v. IRC** (1921): "In a taxing Act one has to look merely at what is clearly said. There is **no room for any intendment**. There is **no equity about a tax**. There is **no presumption as to a tax**. Nothing is to be read in, nothing is to be implied. One can only look fairly at the language used."

**Indian cases**

- **A.V. Fernandez v. State of Kerala** (1957): if the person sought to be taxed **comes within the letter of the law**, they must be taxed, however great the hardship. If not, they are free, however apparently within the spirit of the law the case may seem. The court cannot extend the meaning by analogy.
- *CIT v. Ajax Products Ltd.* (1965).
- *Mathuram Agrawal v. State of M.P.* (1999): the subject is not to be taxed without clear words. The **charging section** (who is taxed, what is taxed, at what rate) must be clear.
- *Govind Saran Ganga Saran v. CST* (1985): the **four components** of a tax (the taxable event, the person on whom levied, the rate, and the measure or value) must be clear.
- *CIT v. Vatika Township* (2014).

**Exemption notifications** (special rule)

- **Commissioner of Customs (Import), Mumbai v. Dilip Kumar & Co.** (2018, Constitution Bench):
    1. Exemption notifications must be **interpreted strictly**. The **burden is on the assessee** to prove applicability.
    2. **Ambiguity in an exemption notification must be interpreted in favour of the revenue**.
    3. This overruled *Sun Export Corporation* (1997), which had held that ambiguity in an exemption favours the assessee.
- Once eligibility is established, the exemption is construed **liberally** (*Hansraj Gordhandas v. CCE*, 1970).

**Other rules**

- **Machinery provisions** (for assessment and collection) are construed **liberally**, so as to make the charge effective (*CIT v. Mahaliram Ramjidas*, 1940; *Gursahai Saigal v. CIT*, 1963).
- Taxing statutes are **not retrospective** unless clearly provided.
- **Substance vs form**: *McDowell & Co. v. CTO* (1985) held that colourable devices are not part of tax planning. *Union of India v. Azadi Bachao Andolan* (2003) and

*Vodafone International Holdings v. UOI* (2012) held that legitimate tax planning is permissible; one looks at the **form** where the transaction is genuine.

## Q25. General principles of strict construction of penal statutes and the limits of the rule

**Rule**: **penal statutes are construed strictly**. If two reasonable interpretations are possible, the one **favouring the accused** is adopted (the **rule of lenity**). No one should be punished unless the case falls **clearly within the words** of the statute. This is based on Art. 21 and Art. 20(1), and on the maxim **nullum crimen sine lege, nulla poena sine lege** (no crime and no punishment without law).

**Reasons**: penal statutes affect **life and liberty**; the State has great power; the citizen must have **fair notice**; and it is the legislature's job, not the court's, to define crimes.

### Cases

- *Tolaram Relumal v. State of Bombay* (1954): if two possible and reasonable constructions can be put on a penal provision, the court must lean towards the one that **exempts the subject from penalty**. The court cannot stretch the meaning of a penal provision.
- **W.H. King v. Republic of India** (1952): a "**premium**" under the Bombay Rent Act. The court held that payment to a different person was not covered; it was strictly construed.
- *Sakshi v. UOI* (2004): the definition of rape could not be expanded by interpretation. It is for the legislature.
- *Commissioner of Customs v. Dilip Kumar* (2018).
- *London & North Eastern Railway v. Berriman* (1946).
- *Bijaya Kumar Agarwala v. State of Orissa* (1996).

### Limits of the rule of strict construction

1. It **does not permit** the court to **defeat the obvious intention** of the legislature, or to adopt an **unnatural or strained** meaning. Strict construction does not mean ignoring the plain meaning.
2. It applies only where there is **genuine ambiguity** after all other aids have been used.
3. Courts may adopt a **purposive interpretation** for **social welfare legislation** that has penal provisions, e.g. food adulteration, economic offences and dowry (*Murlidhar Meghraj Loya v. State of Maharashtra*, 1976: in socio-economic offences, the strict construction rule yields to the purpose; *Alamgir v. State of Bihar*, 1959; *Kanwar Singh v. Delhi Administration*, 1965; *Balram Kumawat v. UOI*, 2003).
4. *M.V. Joshi v. M.U. Shimpi* (1961): **"Butter"** in the Prevention of Food Adulteration Act included butter made from curd, to suppress the mischief.
5. *Kartar Singh v. State of Punjab* (1994): **vague penal laws** may be struck down under Art. 14 or Art. 21.
6. *Shreya Singhal v. UOI* (2015): s.66A of the IT Act was struck down for vagueness.

## Q26. Mens rea in statutory offences and under the BNS, 2023

**Mens rea**: a "guilty mind". The maxim is **actus non facit reum nisi mens sit rea** (the act does not make a person guilty unless the mind is also guilty).

**Presumption**: **mens rea is an essential ingredient** of every offence **unless** the statute **expressly or by necessary implication excludes it**.

- *Sherras v. De Rutzen* (1895, Wright J.): there is a presumption that mens rea is required. The presumption can be displaced by the words or the subject matter.
- **Sweet v. Parsley** (1970, House of Lords): a landlady was **not liable** for cannabis use on her premises without knowledge. Mens rea is presumed to be required unless clearly excluded.
- *Brend v. Wood* (1946): "It is of the utmost importance for the protection of the liberty of the subject that a court should always bear in mind that, unless the statute either clearly or by necessary implication rules out mens rea as a constituent part of a crime, the court should not find a man guilty of an offence against the criminal law unless he has a guilty mind."

**Indian cases**

- **Nathulal v. State of M.P.** (1966): a dealer stored foodgrains without a licence while his application was pending, believing it was permissible. The court held mens rea is an essential ingredient unless excluded, and **acquitted** him.
- **State of Maharashtra v. Mayer Hans George** (1965): a passenger in **transit** carried gold through India in breach of an RBI notification that had been published but of which he had no knowledge. He was held **liable**. **Mens rea was excluded by necessary implication** under the FERA and Customs Act, given the object of the statute.
- *Ranjit D. Udeshi v. State of Maharashtra* (1965): knowledge of obscenity is not required under IPC s.292 for selling obscene books. Strict liability applied.
- *Sarjoo Prasad v. State of U.P.* (1961): a servant selling adulterated food was liable without mens rea.
- *Inder Sain v. State of Punjab* (1973).
- *Kalpnath Rai v. State* (1997).

**Strict liability offences** (mens rea excluded): **public welfare** offences, including food adulteration, drugs, pollution, weights and measures, traffic, and economic offences. Penalties are usually **minor**, and the purpose is **regulatory**.

**Mens rea in the BNS, 2023**

- The BNS does not use the term "mens rea". It uses words like **"intentionally", "knowingly", "voluntarily" (s.2(33)), "dishonestly" (s.2(7)), "fraudulently" (s.2(9)), "reason to believe" (s.2(29)), "negligently", "rashly"** and "malignantly".
- The **General Exceptions (ss. 14–44)** incorporate the absence of mens rea:
    - mistake of fact (ss.14, 17);

    - accident (s.18);
    - child under 7 (s.20) and immature child of 7–12 (s.21);
    - unsoundness of mind (s.22);
    - involuntary intoxication (s.23).
- Some offences are of **strict liability** (e.g. **s.64, rape of a girl under 18**, where consent is immaterial; **s.137, kidnapping**, where knowledge of age is immaterial: *R v. Prince*, 1875).
- Specific provisions need specific mental states: murder (s.101, **intention or knowledge**), theft (s.303, **dishonest intention**), cheating (s.318, **fraudulently or dishonestly**).

## Q27. Vicarious liability in statutory offences

**General rule**: in criminal law there is **no vicarious liability**. A person is liable only for their **own acts** with their **own mens rea**. The maxim *qui facit per alium facit per se* (one who acts through another acts himself) applies in **civil law (torts)**, not criminal law.

**Exceptions: statutory vicarious liability**. Where the **statute expressly or impliedly** imposes liability on a master, employer, principal or company director for the acts of servants or the company:

1. **Offences by companies**: most modern statutes provide that **every person in charge of, and responsible to the company for, the conduct of its business** at the time of the offence is deemed guilty, unless they prove it was **without their knowledge** or that they exercised **due diligence**. Examples:
    - Negotiable Instruments Act s.141;
    - Food Safety and Standards Act s.66;
    - Environment (Protection) Act s.16;
    - Drugs and Cosmetics Act s.34;
    - IT Act s.85;
    - Prevention of Food Adulteration Act s.17;
    - BNS s.2(26) (“person” includes a company).
2. **Master and servant**: e.g. licensing offences, where the licensee is liable for the servant’s sale.
3. **Public nuisance** cases.

**Cases**

- **Mousell Bros. Ltd. v. London & North Western Railway Co.** (1917): a company was held liable for the false invoices of its manager. Whether the master is liable depends on the **object of the statute**, the words used, the nature of the duty, the person on whom it is imposed, and the person by whom it would ordinarily be performed.
- *Allen v. Whitehead* (1930): a café owner was liable for prostitutes gathering, where the manager knew.
- **Sarjoo Prasad v. State of U.P.** (1961): a **servant** selling adulterated oil was held liable. Even if the servant had no knowledge, the statute imposed liability.

- **State of Maharashtra v. Syndicate Transport Co.** (1964): a company can be **criminally liable**.
- **Standard Chartered Bank v. Directorate of Enforcement** (2005, Constitution Bench): a **company can be prosecuted** even for offences carrying **mandatory imprisonment**; a fine can be imposed instead.
- **Iridium India Telecom Ltd. v. Motorola Inc.** (2011): a company can have **mens rea**, through the **doctrine of attribution** (the "alter ego" or directing mind).
- **Aneeta Hada v. Godfather Travels & Tours** (2012): under s.141 NI Act, a director can be prosecuted only if the **company is also arraigned** as an accused.
- **Sunil Bharti Mittal v. CBI** (2015): an individual (the MD) is **not automatically vicariously liable** for the company's offence unless the statute specifically provides for it, or there is evidence of the individual's **active role** and criminal intent.
- *S.M.S. Pharmaceuticals Ltd. v. Neeta Bhalla* (2005): the complaint must specifically aver that the director was in charge of and responsible for the business.

## Q28. Distinction between remedial and penal statutes; liberal construction of remedial statutes

**Remedial statutes**: statutes that **provide a remedy** for a defect or mischief, grant **new benefits**, or improve the condition of a class. They are also called **welfare or beneficial** legislation. Examples: the Workmen's Compensation Act, the Industrial Disputes Act, the Maternity Benefit Act, Rent Control Acts, the Consumer Protection Act, the Payment of Gratuity Act, the Minimum Wages Act, the DV Act 2005, and the RTI Act.

**Penal statutes**: statutes that **impose penalties or punishment** (fine, imprisonment or forfeiture) for an act or omission. Examples: the BNS, the NDPS Act, and the penal provisions of other Acts.

| Remedial statute | Penal statute |
|---|---|
| Provides a **remedy / benefit** | Imposes **punishment** |
| Construed **liberally / beneficially** in favour of the beneficiary | Construed **strictly** in favour of the accused |
| Object: social welfare, advancing the remedy | Object: deterrence and punishment |
| Doubt is resolved **in favour of the class to be benefited** | Doubt is resolved **in favour of the accused** |
| May operate **retrospectively** if the intent is clear | **Cannot** be retrospective (Art. 20(1)) |

*Note*: one statute may have **both remedial and penal** provisions, and each part is construed accordingly. *Murlidhar Meghraj Loya* (1976): even penal provisions in welfare statutes are construed purposively.

### Liberal (beneficial) construction of remedial statutes

- **Rule**: remedial or welfare statutes should be construed **liberally** to **advance the remedy and suppress the mischief**, in favour of those for whose benefit they are

enacted. If two interpretations are possible, the one that **furthers the beneficial purpose** is adopted.

- **Limit**: liberal construction cannot **do violence to the language** or rewrite the statute. Courts cannot extend the benefit to persons clearly excluded.
- **Cases**:
  - **Alembic Chemical Works Co. v. Workmen** (1961): in construing labour welfare legislation, courts should adopt a **beneficent rule of construction**. If a section is capable of two constructions, the one that **furthers the policy** and is more beneficial to the employees should be preferred.
  - *Workmen of American Express International Banking Corp. v. Management* (1985): Sundays were counted as working days for gratuity, giving a liberal reading.
  - **Bharat Singh v. Management of New Delhi Tuberculosis Centre** (1986).
  - *Union of India v. Prabhakaran Vijaya Kumar* (2008): railway accident compensation was interpreted beneficially; an "untoward incident" included accidental falls from trains.
  - *B. Shah v. Presiding Officer, Labour Court* (1977): the Maternity Benefit Act. Sundays were included in the computation of benefits.
  - *Bangalore Water Supply v. A. Rajappa* (1978): "industry" was given a wide meaning.
  - *Kerala Fishermen's Welfare Fund Board v. Fancy Food* (1995).
  - *Hindustan Lever Ltd. v. Ashok Vishnu Kate* (1995).

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# MODULE 7 — COMMENCEMENT, OPERATION, EXPIRY AND REPEAL OF STATUTES

## Q29. Commencement of a statute

- A statute **comes into force on**:
  1. the **date specified** in the Act itself; or
  2. the **date notified** by the Government in the Official Gazette (the Act may give the Government power to bring it into force, and different dates can be appointed for different provisions); or
  3. if no date is specified, the **date of assent** of the President or Governor (GCA s.5(1)).
- It comes into force **at the beginning of the day (midnight)** (GCA s.5(3)), i.e. immediately on the expiry of the day preceding commencement.
- **Courts cannot direct** the Government to bring an Act into force (*A.K. Roy v. UOI*, 1982; *Aeltemesh Rein v. UOI*, 1988: the court can only ask the Government to consider it).
- Ordinances come into force on **promulgation**.
- **Delegated legislation** comes into force on publication in the Gazette, unless otherwise stated (*Harla v. State of Rajasthan*, 1951: **publication is necessary**; a law cannot come into force without being made known).
- Example: the BNS, BNSS and BSA were notified to come into force on **1 July 2024**.

## Q30. Prospective, retrospective and retroactive operation of statutes. *(Important)*

**Prospective operation**: the statute applies **only to future** acts and transactions, **after its commencement**. **General rule: statutes are presumed to be prospective** (*nova constitutio futuris formam imponere debet, non praeteritis*: a new law ought to regulate what is to follow, not the past).

**Retrospective operation**: the statute applies to **past acts and transactions**. It **takes away or impairs vested rights**, creates new obligations, or attaches new disabilities in respect of **past transactions**. It is **not presumed**. It must be **expressly provided or necessarily implied**.

**Retroactive operation**: (some writers distinguish this) the statute operates **for the future only**, but **draws on antecedent facts** for its operation. For example, a law providing that persons convicted earlier are disqualified from contesting **future** elections is not retrospective; it is retroactive. *State Bank's Staff Union v. UOI* (2005).

**Rules**

1. **Substantive laws** (creating or affecting **vested rights** or liabilities) are **prospective**, unless expressly or by necessary implication retrospective (*Garikapati Veeraya v. N. Subbiah Choudhry*, 1957: the right of appeal is a vested right).
2. **Procedural laws** are **retrospective** (applicable to pending proceedings), unless they affect vested rights. *No one has a vested right in procedure.*
    - **Hitendra Vishnu Thakur v. State of Maharashtra** (1994): principles. A procedural statute should not generally be applied retrospectively where the result would be to create new disabilities or obligations, or to impose new duties for transactions already accomplished.
    - *Anant Gopal Sheorey v. State of Bombay* (1958).
    - *Shyam Sundar v. Ram Kumar* (2001): substantive rights are not affected.
3. **Penal laws**: **cannot be retrospective** to the prejudice of the accused under **Art. 20(1)**, i.e. **no ex post facto** criminal law (no conviction for an act not an offence when done, and no greater penalty than was in force at that time).
    - *Kedar Nath Bajoria v. State of W.B.* (1953).
    - **Rattan Lal v. State of Punjab** (1965): a **beneficial** penal law (the Probation of Offenders Act) can apply **retrospectively** in favour of the accused. Art. 20(1) bars only retrospective **prejudicial** laws.
    - *T. Barai v. Henry Ah Hoe* (1983): the reduction of punishment by amendment benefits the accused.
    - *Keshavan Madhava Menon v. State of Bombay* (1951): a prosecution under the Press Act after the Constitution was not saved, since Art. 13 is prospective.
4. **Declaratory and clarificatory Acts** are **retrospective** (they declare what the law always was). *Zile Singh v. State of Haryana* (2004).
5. **Validating Acts** are retrospective by nature. They **remove the basis** of a judgment declaring a law invalid. The legislature **cannot directly overrule** a judgment (*S.R. Bhagwat v. State of Mysore*, 1995; *Madras Bar Association v. UOI*, 2021).

6. **Taxing statutes** may be retrospective if expressly provided, subject to Arts. 14 and 19 (reasonableness). *Vodafone* (2012) led to the retrospective amendment of 2012, which was later withdrawn in 2021.
7. **Remedial and beneficial statutes** may be construed retrospectively if the intention is clear.

**Presumption against retrospectivity: rationale**: fairness; vested rights; the rule of law; persons should be able to plan their conduct. *Govind Das v. ITO* (1976). *Commissioner of Income Tax v. Vatika Township* (2014, Constitution Bench): the presumption against retrospectivity is based on fairness, and legislation is presumed not to be intended to have retrospective operation.

## Q31. Perpetual and temporary statutes; effect of expiry of temporary statutes. *(Important)*

**Perpetual statute**: one with **no fixed period** of duration. It remains in force **until repealed** (expressly or impliedly). "Perpetual" does not mean it cannot be repealed. Examples: the Indian Contract Act and the Constitution.

**Temporary statute**: one **for a fixed period** (it contains a sunset clause) and **expires automatically** on the expiry of that period, unless **extended** or made permanent. Examples:

- **Ordinances** under Art. 123 or 213 (valid until 6 weeks after the reassembly of the legislature);
- TADA (1985, lapsed in 1995);
- POTA;
- the Finance Act (annual);
- some emergency laws.
- A temporary Act can be extended by a **fresh enactment** before it expires. A temporary Act cannot be "revived" after expiry except by a fresh enactment.

**Effect of expiry of a temporary statute**

1. **Section 6 of the GCA does not apply** to the **expiry** of temporary statutes. s.6 applies only to **repeals**, and expiry is not a repeal. So when a temporary Act expires, **pending proceedings lapse** and **no prosecution** can be started or continued for offences committed while it was in force, **unless the Act contains a saving clause**.
    - **State of Orissa v. Bhupendra Kumar Bose** (1962): the general rule is that unless the temporary statute contains a saving provision, legal proceedings under it end on its expiry. **However**, the court said that the question of whether **rights or liabilities** survive depends on the **construction of the statute** and the nature of the right (some rights and liabilities may survive).
    - **Rayala Corporation (P) Ltd. v. Director of Enforcement** (1969): proceedings under FERA Rule 132A (which had lapsed by its omission) could not continue. s.6 of the GCA does not apply to expiry or omission.
    - *S. Krishnan v. State of Madras* (1951): preventive detention.

    - *Kolhapur Canesugar Works Ltd. v. Union of India* (2000): s.6 does not apply to the **omission of rules**.
    - *Fibre Boards (P) Ltd. v. CIT* (2015): **"omission" is a form of repeal**, so s.6 applies. This doubted Kolhapur Canesugar and Rayala. *Shree Bhagwati Steel Rolling Mills v. CCE* (2016) agreed.
2. **Acts done and completed** under the temporary statute before its expiry remain **valid**: past transactions are not undone.
3. **Notifications, orders and rules** made under it **lapse** with it.
4. **Persons in custody** under detention laws must be released.
5. If the temporary Act is **repealed before expiry**, **s.6 GCA applies** (since that is a repeal).
6. If the temporary Act is **re-enacted**, the earlier provisions may be continued (GCA s.24).
7. **Ordinances**: on **lapse**, past acts done under them are **not automatically void**. *Krishna Kumar Singh v. State of Bihar* (2017, 7-judge Constitution Bench): there is **no automatic saving** of rights and liabilities under a lapsed ordinance. The test is **public interest and constitutional necessity**. Re-promulgation of ordinances is a **fraud on the Constitution** (also *D.C. Wadhwa v. State of Bihar*, 1987).

## Q32. Express and implied repeal. ***(Important)***

**Repeal**: the **abrogation / revocation** of an existing law by the legislature. The power to legislate includes the power to repeal (GCA s.6; Art. 245, 246).

**Express repeal**

- The repealing Act **expressly declares** that the earlier Act or provisions are repealed. Words used are "**is hereby repealed**", "shall cease to have effect", "is omitted", "substituted".
- Examples: BNS s.358 repealed the IPC; BNSS s.531 repealed the CrPC; BSA s.170 repealed the IEA.
- **Repealing and Amending Acts** remove obsolete laws.

**Implied repeal**

- No express words of repeal are used, but **a later Act is so inconsistent or repugnant with an earlier Act** that **both cannot stand together**. Then the **later Act impliedly repeals** the earlier one to the extent of the inconsistency (*leges posteriores priores contrarias abrogant*: later laws abrogate earlier contrary laws).
- **Presumption against implied repeal**: the legislature is presumed to know the existing law, and if it intended to repeal it, it would have said so. Courts lean **against** implied repeal, and try to harmonise the two first.

**Tests for implied repeal** (*Municipal Council, Palai v. T.J. Joseph*, 1963; *Zaverbhai Amaidas v. State of Bombay*, 1954; *Ratan Lal Adukia v. UOI*, 1989):

1. Is there a **direct conflict** between the two provisions, so that they cannot stand together?

2. Did the legislature intend to **lay down an exhaustive code** on the subject (occupying the whole field)?
3. Do the two laws occupy the **same field**?

If yes, the earlier is impliedly repealed.

**Special vs general**: **Generalia specialibus non derogant**. A **later general law** does not repeal an **earlier special law** by implication, unless the intention is clear. The special law is treated as an exception to the general law (*J.K. Cotton Spinning & Weaving Mills v. State of U.P.*, 1961; *Ethiopian Airlines v. Ganesh Narain Saboo*, 2011). But a **later special law** may override an earlier general law.

**Repeal by Art. 254** (repugnancy between Union and State laws in the Concurrent List) is a form of implied repeal.

**Cases**: *Zaverbhai Amaidas v. State of Bombay* (1954); *Municipal Council Palai v. T.J. Joseph* (1963); *State of M.P. v. Kedia Leather & Liquor Ltd.* (2003): implied repeal is not to be readily inferred.

## Q33. Consequences of repeal. *(Very important)*

**(a) Common law position (before the GCA)**: the repealed statute is treated **as if it had never existed**, except for **past and closed transactions**. Pending proceedings fall and no prosecution can be started for past offences. This was **harsh**, so the **GCA s.6** was enacted.

**(b) Section 6 GCA: effect of repeal**: where any Central Act or Regulation **repeals** any enactment, **unless a different intention appears**, the repeal **shall not**:

- a. **revive** anything **not in force or existing** at the time the repeal takes effect;
- b. affect the **previous operation** of the repealed enactment, or anything duly done or suffered under it;
- c. affect any **right, privilege, obligation or liability** acquired, accrued or incurred under the repealed enactment;
- d. affect any **penalty, forfeiture or punishment** incurred in respect of any offence committed against the repealed enactment;
- e. affect any **investigation, legal proceeding or remedy** in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment. Any such investigation, legal proceeding or remedy **may be instituted, continued or enforced**, and any such penalty may be imposed, **as if the repealing Act had not been passed**.

**Principles from s.6**

1. **No revival**: s.6(a) and s.7. If Act A repealed Act B, and later Act A is itself repealed, Act B **does not revive** unless expressly provided.
2. **Past transactions are saved**.
3. **Accrued rights and liabilities are saved**, but **not a mere hope or expectation** or an inchoate right. *Abbott v. Minister for Lands* (1895): the mere right to take

advantage of a repealed statute is not an accrued right. *Lalji Raja & Sons v. Hansraj Nathuram* (1971). *M.S. Shivananda v. Karnataka SRTC* (1980).

4. **Pending proceedings continue** under the old law (*State of Punjab v. Mohar Singh*, 1955: prosecution under a repealed ordinance could continue after repeal and re-enactment).
5. **Offences committed before the repeal** can be **prosecuted** after the repeal.
6. **"Unless a different intention appears"**: the repealing Act may indicate a different intention, either by an express saving or by necessary implication from its scheme. *State of Punjab v. Mohar Singh* (1955): when there is a **repeal and re-enactment**, the court looks to see whether the new law **manifests an intention incompatible with or contrary to** s.6. The mere absence of a saving clause is not enough to exclude s.6.

**(c) Repeal and re-enactment (GCA s.8)**: where an Act is **repealed and re-enacted** with or without modification, **references** in other enactments to the repealed provision are construed as references to the **re-enacted provision**. **GCA s.24**: notifications, orders, rules and bye-laws under the repealed Act **continue** so far as **not inconsistent** with the re-enacted provisions, until superseded. Examples: BNSS s.531(2) saves pending proceedings under the CrPC; BNS s.358 and BSA s.170 contain savings.

**(d) Repeal of an amending Act**: s.6A of the GCA. Once an amending Act has done its job (by inserting or omitting provisions in the principal Act), its **repeal does not affect** the amendments made. *Jethanand Betab v. State of Delhi* (1960).

**(e) Omission vs repeal**: is "omission" a repeal that attracts s.6?

- *Rayala Corporation* (1969) and *Kolhapur Canesugar* (2000) held that s.6 does **not** apply to omission.
- **Fibre Boards (P) Ltd. v. CIT** (2015) held that **omission is a species of repeal**, so s.6 applies. *Shree Bhagwati Steel Rolling Mills v. CCE* (2016) agreed.

**(f) Repeal of a temporary statute** before expiry: s.6 applies. **Expiry** of a temporary statute: s.6 does **not** apply (see Q31).

**(g) Effect of a repeal on delegated legislation**: rules made under the repealed Act **fall**, unless saved by the GCA s.24 or by a saving clause.

**(h) Unconstitutional statutes**: a law declared void under **Art. 13** is "**still-born**" (void ab initio) if it was enacted after the Constitution in violation of FRs (*Deep Chand v. State of U.P.*, 1959). It is **eclipsed** (the **doctrine of eclipse**) if it is a pre-constitutional law and revives when the inconsistency is removed (*Bhikaji Narain Dhakras v. State of M.P.*, 1955).

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**Exam tips**

1. For **rules of interpretation** (literal, golden, mischief, harmonious), always write: the meaning, the statement of the rule (Tindal / Wensleydale / Heydon), English cases, **Indian cases**, merits and demerits, and a conclusion.

2. Draw a **comparison table** wherever possible (literal vs golden vs mischief; internal vs external aids; penal vs remedial).
3. **Must-know cases**:
    - English: Heydon’s Case, Grey v. Pearson, Whiteley v. Chappell, R v. Allen, Smith v. Hughes, Powell v. Kempton Park, Pepper v. Hart, Cape Brandy Syndicate.
    - Indian: Venkataramana Devaru, Kesavananda, Golak Nath, Bengal Immunity, K.P. Varghese, A.V. Fernandez, Dilip Kumar (2018), Nathulal, Mayer Hans George, Alembic Chemical, Dhulabhai, Mohar Singh, Bhupendra Kumar Bose.
    - Mimansa: Ispat Industries and Udai Shankar Awasthi.